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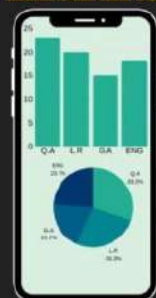
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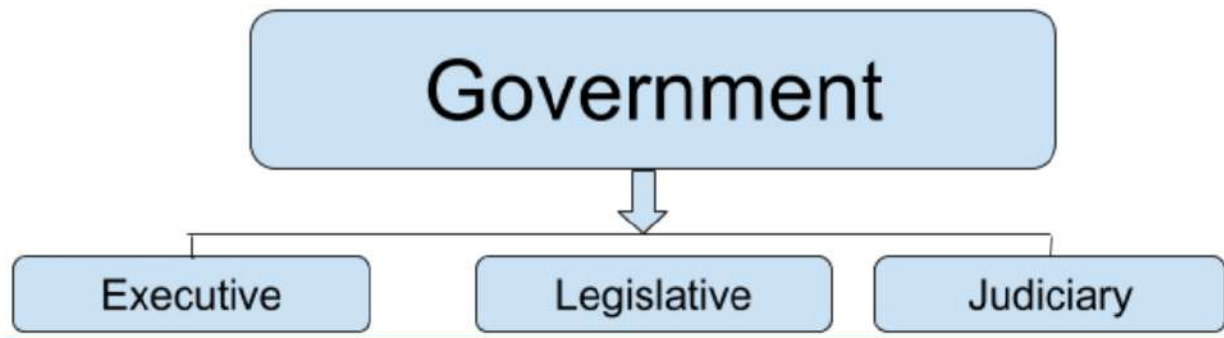
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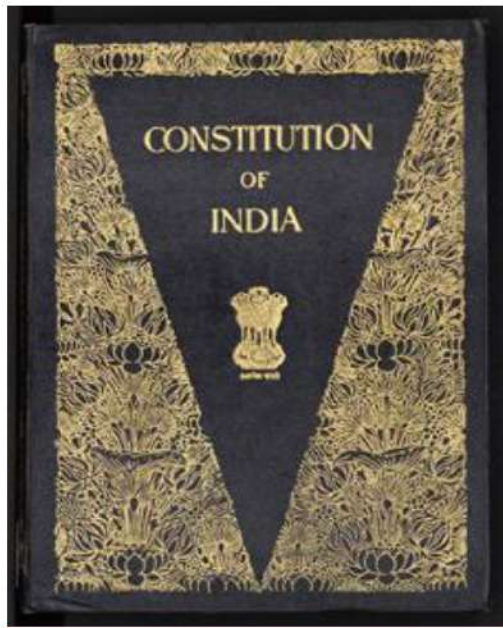
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INDIAN POLITY

INTRODUCTION



CONSTITUTION:



- ✓ The constitution of a country is a document that comprises a set of written rules accepted by everyone living together in that country.
- ✓ The Constitution of a country is the supreme law of the land and it determines the relationship among people living in that country and also regulates the government and its policies towards its citizens.

Role of Constitution:

A constitution serves a lot of purpose; its major roles are as follows:

- ✓ It describes rules and regulations that generate a degree of trust and coordination among the people of different strata of a society who live together;
- ✓ It provides a framework within which the government and other institutions work in the country;
- ✓ It lays down the procedure as to how the government will be constituted and the manner in which decisions are taken;
- ✓ It defines the powers, duties, and limits of the respective government.
- ✓ It also tells the rights of the citizens and defines the rule of law and a procedure to protect them.
- ✓ All the democratic countries have their own constitutions. But having a full-fledged constitution in a country is not a guarantee for it to be truly democratic.
- ✓ The Americans gave themselves a constitution after the War of Independence against the Great Britain in 1787.
- ✓ Similarly, the French people approved a democratic constitution after the Revolution, i.e., first in 1791 and recently in 1958. Since then, it has become a practice in all democracies to have a written constitution.

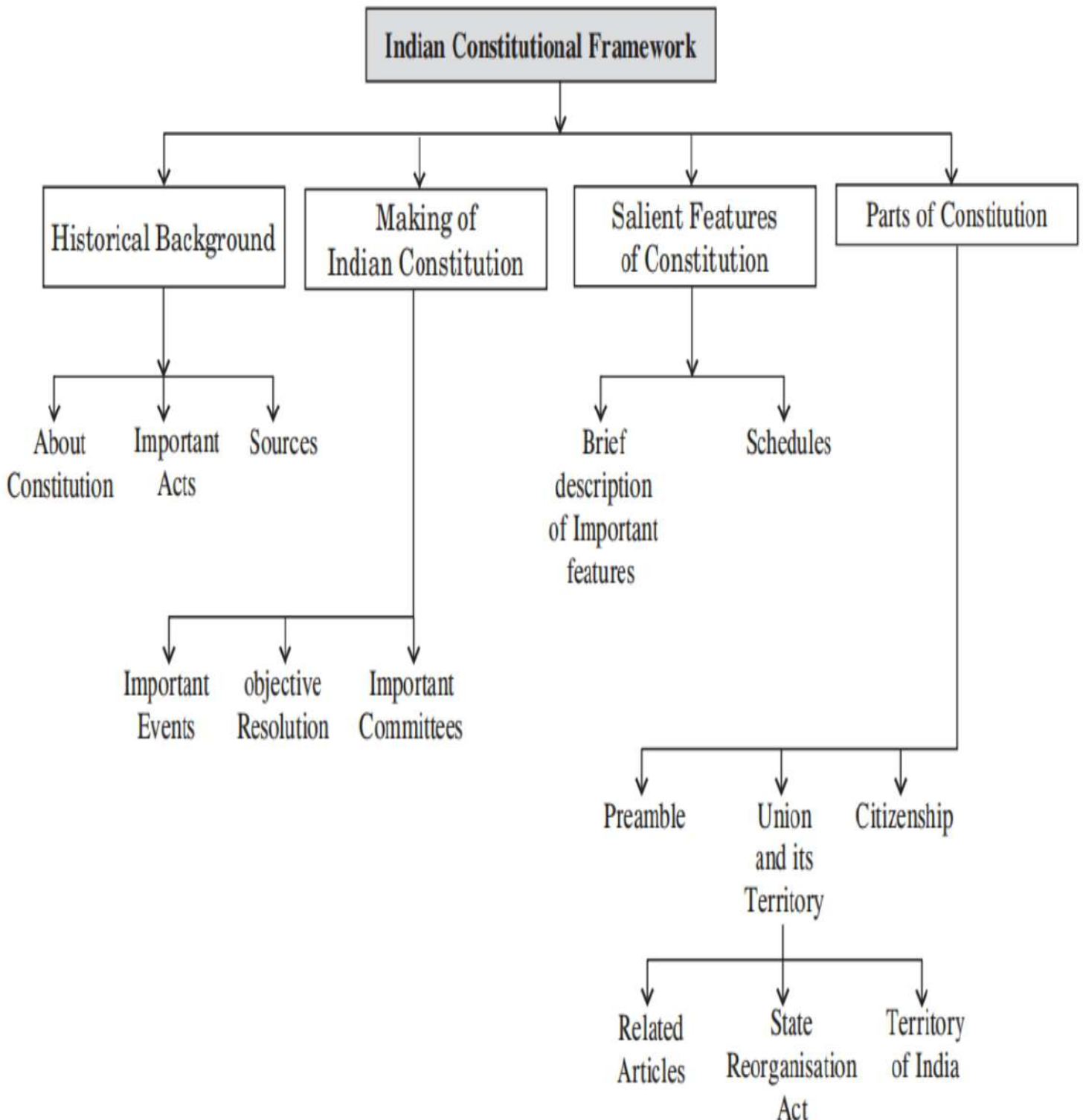
A compilation of basic rules is called a constitution, and these rules are comprehensive that define:

- ✓ the powers of the elected governments to do things;
- ✓ the limitations for not to do certain things;
- ✓ fundamental rights of the citizen; and

How the rulers are to be chosen in future:

The term constitution is derived from latin word “constituere” which means to “to establish”.

- ✓ Constitution means a document having a special legal sanctity, which sets out the framework, principles and functions of the government.
- ✓ The idea of constitutionalism suggests ways and means to work out a government form, which exercises power and ensures, at the same time, individual freedom and liberty.



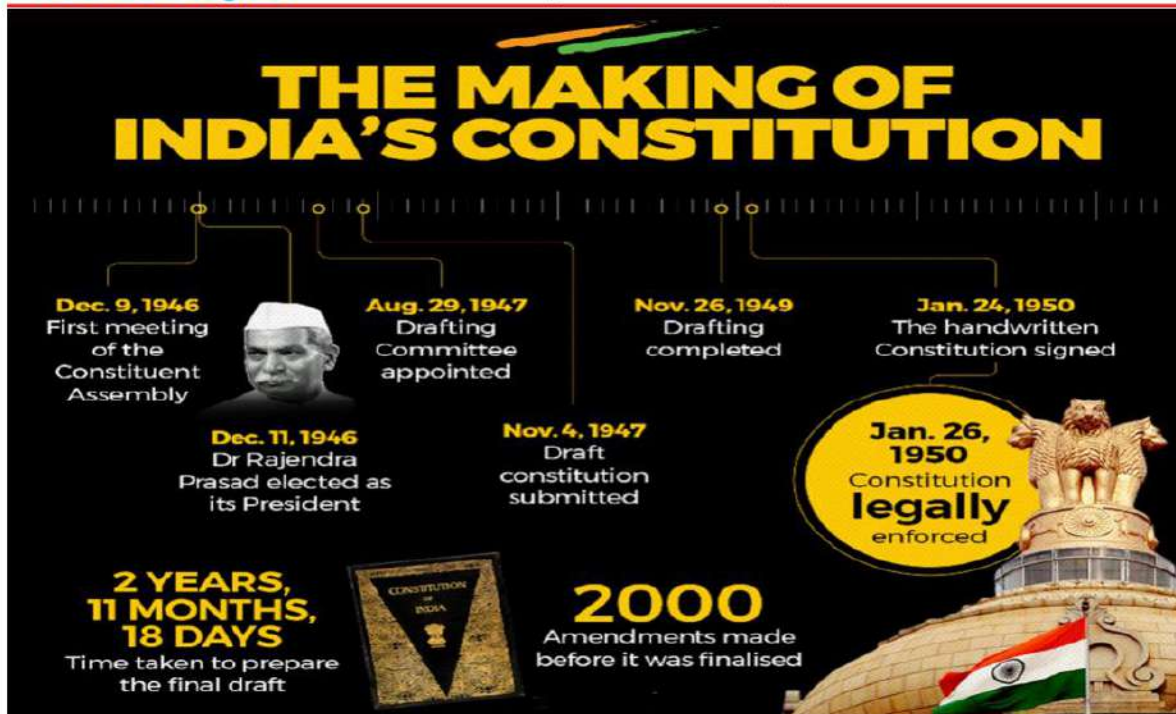
HISTORICAL BACKGROUND

Constitutional Landmark	Important Provisions
Regulating Act, 1773	- British government to regulate affairs of East India Co. - Designated Governor of Bengal as Governor General of Bengal. Warren Hastings was the first Governor General. - Established a Supreme Court at Calcutta.
Pitts India Act, 1784	- Indian affairs under direct control of British government. - Board of Control was established.
Charter Act of 1793	- Salary of company to drawn from the Indian exchequer. - The Governor General and governors to override the decision of Councils. - Company got monopoly of trade with India for another 20 years.
Charter Act, 1833	- Governor General of Bengal became Governor General of India. - Lord William Bentinck was the first Governor General of India. - The Act centralized British rule in India. - Created Government of India, with authority over all of British India. - East India Co. lost its monopoly of tea trade and China trade. - The Indian Civil Services was founded.
Charter Act, 1853	- Separated legislative & executive functions of Governor General's Council. - Open competition for Indian Civil Services. - Patronage of the directors of the company ends.
Government of India, Act, 1858	- Act known as the Act for the Good Government of India. - Company rule was replaced by British crown. - Secretary of State for India was appointed to exercise the power of the Crown. He was a member of British cabinet, responsible to it and was assisted by Council of India with 15 members. - Governor General became the agent of the crown and now known as <i>Viceroy of India</i>. <i>Lord Canning</i> became the first Viceroy of India.
Indian Councils Act, 1861	- Parliamentary system started in India. - Indians became non-official members of the legislature. - Started decentralization of power. - Recognition to the 'Portfolio' system, was introduced by Lord Canning in 1859.
Indian Councils Act, 1892	- Introduced indirect elections. Governor General could nominate members. - Functions of Legislative Council Expanded to discuss the budget and ask questions to the executive.
Indian Councils Act, 1909 (<i>Morley-Minto Reforms</i> . Lord Morley was then the secretary of state for India and Lord Minto was then the viceroy of India).	- Central Legislative Council became imperial Legislative Council with officials forming the majority. - Provincial legislative councils had a majority of non-official members. <i>Satyendra Prasad Sinha</i> became the first Indian to join the Viceroy's Executive Council. - Introduced communal representation for muslims with a separate electorate system. Legalized communalism. Lord Minto created a communal electorate.
Government of India Act, 1919/ <i>Montague - Chelmsford Reforms</i> . Montague was the secretary of state for India and Lord Chelmsford was the viceroy of India.	- Separated central subjects from provincial subjects. - Provincial subjects were transferred and reserved. - Transferred subjects were administered by Governor with the help of ministers who were responsible to the legislature. - Reserved subjects were administered by Governor and Executive Council who were not responsible to the legislature. <i>Dyarchy/ Dual system</i> of government was introduced. <i>Bicameral legislature</i> with upper and lower houses were formed with direct elections. - Majority of members in both houses were directly elected. 3 of the 6 members of governor-general's council had to be Indians.

Government of India Act, 1935	- Established All India federation of provinces & princely states as constituent units. - It provided for the establishment of <i>Reserve Bank of India</i>, <i>Federal Court</i>, <i>Public Service Commission</i>, Provincial Public Service Commission & Joint Public Service Commission for two or more Provinces. - Federal, provincial and concurrent were lists introduced. - Abolished dyarchy in provinces which now had provincial autonomy. - Introduced dyarchy at the centre and bicameralism in the provinces. - Introduced responsible governments in provinces.
The August Offer, 1940	- Expansion of the Governor-General's Executive Council to include more Indians. - Establishment of an Advisory War Council.
Cripps Proposals, 1942	- Provision made up for participation of Indian States in the Constitution making body. - The leaders of the principal sections of the Indian people were invited to take active and effective participation in the councils of their country.
C.R. Formula, 1944	C.R. Raja Gopalchari presented the 'C.R. Formula' by which the Muslim League would support the Congress demand for complete freedom.
Wavell Plan, 1945	Under this plan, India was to be granted Dominion status in the near future.
Lord Attlee's Announcement, March 1946	On 15 March 1946, Lord Attlee declared that as the tide of nationalism was surging ahead in India, it was in British interest to take positive action.
Cabinet Mission Plan, 1946	- There should be a Union of India, embracing both British India and the states which should deal with foreign affairs. - To set up Interim Government. - A Constituent Assembly should be set up to draw up the future Constitution of the country.
Indian Independence Act, 1947	- Declared India as independent & sovereign state. - Established responsible government at the Center & Provinces. - Designated Governor General of India & Provincial Governors as Constitutional heads or nominal heads. - Lord Mountbatten became the first Governor General of free India. The first & last Indian Governor General was C. Rajagopalachari.

CONSTITUENT ASSEMBLY:

- ✓ The Constituent Assembly was formed on the recommendation of the cabinet mission in 1946.
- ✓ The Constituent Assembly held its first meeting on December 9, 1946.
- ✓ Dr. Sachchidanand Sinha, the oldest member was elected as the temporary President of the Assembly.
- ✓ Dr. Rajendra Prasad was elected as the First President of the Assembly.
- ✓ On December 13, 1946 Jawaharlal Nehru moved the historic Objectives Resolution in the Assembly.
- ✓ The Preamble to the Indian Constitution is based on the 'Objectives Resolution', drafted and moved by Pandit Nehru, and adopted by the Constituent Assembly.
- ✓ Constituent Assembly as the provisional parliament of India from January 26, 1950 till the formation of new Parliament after the first general elections in 1951–52.
- ✓ The total expenditure incurred on making the Constitution amounted to 64 lakhs.
- ✓ The Constitution as adopted on November 26, 1949, contained a Preamble, 395 Articles and 8 Schedules and 22 parts.
- ✓ Dr BR Ambedkar known as chief architect of Indian Constitution.
- ✓ Chairman of the Constitution Drafting Committee is Dr BR Ambedkar.
- ✓ Prem Behari Narain Raizada was the calligrapher of the Indian Constitution. The original constitution was handwritten by him in a flowing italic style.
- ✓ It ratified the India's membership of the Commonwealth in May 1949.
- ✓ It adopted the national flag on July 22, 1947.
- ✓ It adopted the national anthem on January 24, 1950.
- ✓ It adopted the national song on January 24, 1950.
- ✓ It elected Dr Rajendra Prasad as the first President of India on January 24, 1950



Framing of the Constitution:

- ✓ The idea of Constituent Assembly for making the Constitution was first mooted by M. N. Roy in 1934.
- ✓ Indian National Congress (INC) officially demanded the formation of Constituent Assembly in 1935.
- ✓ The demand was accepted, in principle, for a Constituent Assembly in August of 1940.
- a) The Constitution of India was framed by a Constituent Assembly which was set up under the Cabinet mission plan (1946).
- b) to complete its historic task of drafting the Constitution for an Independent India.
- c) During this period it held 11 sessions covering a total of 165 days. Of these, 114 days were spent on the consideration of and discussion on the Draft Constitution.
- d) As for the composition of the Assembly, members were chosen by indirect election by the members of the Provincial Legislative Assemblies, following the scheme recommended by the Cabinet Mission.

The arrangement was as follows:

- (i) 292 members were elected through the Provincial Legislative Assemblies;
- (ii) 93 members represented the Indian Princely States; and
- (iii) 4 members represented the Chief Commissioners Provinces.

The total membership of the assembly thus was to be 389.

- e) However, as a result of the partition under the Mountbatten Plan of 3 June 1947, a separate Constituent Assembly was set up for Pakistan and representatives of some provinces ceased to be members of the Assembly.

As a result, the membership of the Assembly was reduced to 299.

First Interim National Govt.:

- ✓ The formation of an interim national Govt. was announced on 24 August, 1946. The Govt. was constituted on 2 September, 1946.
- ✓ It was led by Pundit Nehru and it comprised 11 other members, including 3 Muslims.
- ✓ Muslim League initially didn't join the Govt.. Technically, however, all the 12 members of the interim Govt. were members of Viceroy's Executive Council. The Viceroy continued to be the head of the Council. Pundit Jawahar Lal Nehru was designated as the Vice-President of the Council.

Interim Government (1946)

S. No	Members	Portfolios Held
1.	Pt. Jawaharalal Nehru	External Affairs and Commonwealth Relations
2.	Sardar Vallabhbhai Patel	Home, Information and Broadcasting
3.	Dr Rajendra Prasad	Food and Agriculture
4.	Dr John Mathai	Industries and Supplies
5.	Jagijvan Ram	Labour
6.	Sardar Baldev Singh	Defence
7.	CH Bhabha	Works, Mines and Power
8.	Liaquat Ali Khan	Finance
9.	Abdur Rab Nishtar	Posts and Air
10.	Asaf Ali	Railways and Transport
11.	C Rajagopalachari	Education and Arts
12.	II Chundrigar	Commerce
13.	Ghaznafar Ali Khan	Health
14.	Joginder Nath Mandal	Law

First Cabinet of Free India (1947)

Members	Portfolios Held
Pt. Jawaharlal Nehru	Prime Minister, External Affairs and Commonwealth Relation; Scientific Research
Sardar Vallabhbhai Patel	Home, Information and Broadcasting; States
Dr. Rajendra Prasad	Food and Agriculture
Maulana Abul Kalam Azad	Education
Dr. John Mathai	Railways and Transport
RK Shanmugham Chetty	Finance
Dr. BR Ambedkar	Law
Jagjivan Ram	Labour
Sardar Baldev Singh	Defence
Raj Kumari Amrit Kaur	Health
C.H. Bhabha	Commerce
Rafi Ahmed Kidwai	Communication
Dr. Shyama Prasad Mukherji	Industries and Supplies
V.N. Gadgil	Works, Mines and Power

MAJOR COMMITTEES AND ITS CHAIRMEN:

- ✓ Union Powers Committee – Jawaharlal Nehru
- ✓ Union Constitution Committee – Jawaharlal Nehru
- ✓ Provincial Constitution Committee – Sardar Patel
- ✓ Drafting Committee – Dr. B.R. Ambedkar
- ✓ Rules of Procedure Committee – Dr. Rajendra Prasad
- ✓ States Committee – Jawaharlal Nehru
- ✓ Steering Committee – Dr. Rajendra Prasad

SALIENT FEATURES OF THE CONSTITUTION:

Longest Written Constitution:

- ✓ The Indian Constitution is considered to be the longest written constitution in the world. It contains different provisions for states and centre and their inter-relationship.
- ✓ The framers of the Constitution have borrowed provisions from several sources and several other Constitutions of the world.
- ✓ Single Constitution for both the Centre and the states.

A unique blend of rigidity and flexibility:

- ✓ Indian Constitution may be called rigid as well as flexible based on its amending procedure.
- ✓ Article 368 in part XX of the constitution deals with the powers of parliament to amend the constitution and its procedure.
- ✓ The Supreme Court ruled that the constituent power of Parliament under Article 368 does not enable it to alter the 'basic structure' of the Constitution.
- ✓ The 42nd Amendment Act (1976) known as 'Mini-Constitution' due to the important and large number of changes made by it in various parts of the Constitution.
- ✓ The term socialist, secular and integrity added to the Preamble of the Indian Constitution by the 42nd Constitutional Amendment Act of 1976.

Parliamentary System of Government:

- ✓ Parliament controls the functioning of the Council of Ministers, and hence it is called the Parliamentary system.
- ✓ India has a Parliamentary Form of Government. India has a Bicameral Legislature with two houses named Lok Sabha and Rajya Sabha.

Single Citizenship:

- ✓ Indian Constitution has the provision for single citizenship provided by the union and recognized by all the states across India.

- ✓ The Indian Constitution is federal and envisages a dual polity (Centre and states) it provides for only a single citizenship, that is the Indian citizenship.

Universal Adult Franchise:

- ✓ The universal adult franchise, which operates with the principle of 'one person one vote.' All Indians who are eighteen years of age or above is entitled to vote in the elections.
- ✓ There is no discrimination in voting rights for the citizens of India based on caste, religion, gender, race or status.
- ✓ The voting age was reduced to 18 years from 21 years in 1989 by the 61st Constitutional Amendment Act of 1988.

Fundamental Duties:

- ✓ The Fundamental Duties of citizens were added to the Constitution by the 42nd Amendment in 1976 on the recommendation of the Swaran Singh Committee.
- ✓ The Part IV-A of the Constitution (which consists of only one Article—51-A) specifies the eleven Fundamental Duties.

Fundamental Rights:

- ✓ The Constitution of India asserts the basic principle that every individual is entitled to enjoy certain essential rights. The provisions for Fundamental Rights are mentioned in Part III of the Indian Constitution.

Part III of the Indian Constitution guarantees six fundamental rights to all the citizens:

- 1.Right to Equality (Articles 14–18),
- 2.Right to Freedom (Articles 19–22),
- 3.Right against Exploitation (Articles 23–24),
- 4.Right to Freedom of Religion (Articles 25–28),
- 5.Cultural and Educational Rights (Articles 29–30)
- 6.Right to Constitutional Remedies (Article 32)

- ✓ Fundamental rights can also be suspended during the operation of a National Emergency except the rights guaranteed by Articles 20 and 21

- ✓ The Supreme Court is a federal court, the highest court of appeal, the guarantor of the fundamental rights of the citizens and the guardian of the Constitution.

Federal or Unitary:

- ✓ India is an indestructible Union with destructible states which means it acquires a unitary character during the time of emergency.
- ✓ The Union is not strictly a federal polity but a quasi-federal polity with some vital elements of unitariness.

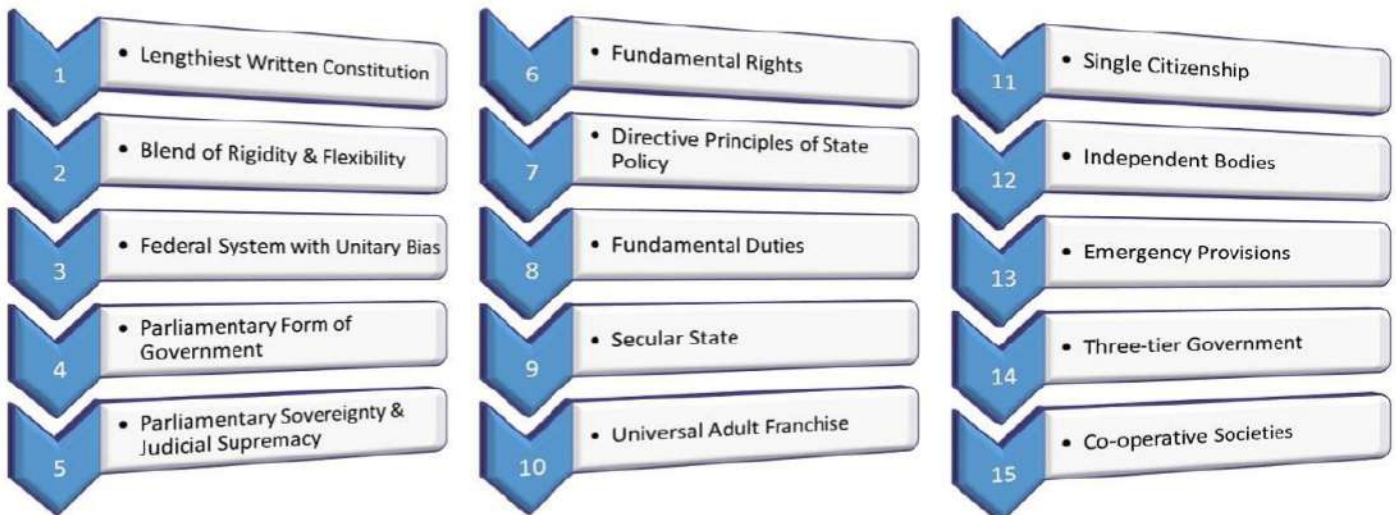
Directive Principles of State Policy:

- ✓ One of the unique provisions of the Indian Constitution is the Directive Principles of State Policy.
- ✓ These principles are like directives to the government to implement them for establishing social and economic justice in India.
- ✓ Balancing Parliamentary Supremacy with Judicial Review: Subject to the provisions of any law made by Parliament or any rules made by the Supreme Court under Article 145, the Supreme Court has the power to review any judgment pronounced or made by it.
- ✓ The independent judiciary in India with the power of judicial review is a prominent feature of our constitution.

Other Important Points:

- ✓ The 73rd and 74th Constitutional Amendment Acts (1992) have added a third-tier of government.
- ✓ The 73rd Amendment Act of 1992 gave constitutional recognition to the panchayats (rural local governments) by adding a new Part IX and a new Schedule 11 to the Constitution.
- ✓ The 74th Amendment Act of 1992 gave constitutional recognition to the municipalities (urban local governments) by adding a new Part IX-A and a new Schedule 12 to the Constitution.

- ✓ The constitution of India provides for a parliamentary form of government.
- ✓ Article 74 and 75 deals with the parliamentary system at the Centre and article 163 and 164 in the states.
- ✓ In 1947, Indian Civil Service (ICS) was replaced by IAS and the Indian Police (IP) was replaced by IPS and were recognised by the Constitution as All-India Services.
- ✓ In 1966, the Indian Forest Service (IFS) was created as the third All-India Service.
- ✓ Article 312 of the Constitution authorises the Parliament to create new All-India Services on the basis of a Rajya Sabha resolution.
- ✓ Article 280 provides for a Finance Commission as a quasi-judicial body. It is constituted by the President every fifth year or even earlier.



PARTS OF INDIAN CONSTITUTION:

1. Part I Articles 1-4 Territory of India,, admission, establishment or formation of new states.
2. Part II Articles 5-11 Citizenship
3. Part III Articles 12-35 Fundamental Rights
4. Part IV Articles 36-51 Directive Principles of State Policy
Part IV A Article 51-A Duties of a citizen of India. It was added by the 42nd Amendment in 1976
5. Part V Articles 52-151 Government at the Union level
6. Part VI Articles 152-237 Government at the State level
7. Part VII Article 238 Deals with states in Part B of the First Schedule. It was repealed by 7th Amendment in 1956
8. Part VIII Articles 239-241 Administration of Union Territories
9. Part IX Article 242-243 Territories in Part D of First Schedule and other territories. It was repealed by 7th Amendment in 1956.
10. Part X Articles 244-244 A Scheduled and tribal areas.
11. Part XI Articles 245-263 Relations between the Union and States.
12. Part XII Articles 264-300 Finance,, property,, contracts and suits.
13. Part XIII Articles 301-307 Trade,, commerce and travel within the territory of India.
14. Part XIV Articles 308-323 Services under the Union and States.
Part XIV-A Articles 323A-323B Added by the 42nd Amendment in 1976 and deals with administrative tribunals to hear disputes and other complaints.
15. Part XV Articles 324-329 Election and Election Commission.

16. Part XVI Articles 330-342 Special provision to certain classes ST/SC and Anglo Indians.
17. Part XVII Articles 343-351 Official languages.
18. Part XVIII Articles 352-360 Emergency provisions.
19. Part XIX Articles 361-367 Miscellaneous provision regarding exemption of the President and governors from criminal proceedings.
20. Part XX Article 368 Amendment of Constitution.
21. Part XXI Articles 369-392 Temporary,, transitional and special provisions.
22. Part XXII Articles 393-395 Short title, commencement and repeal of the Constitution

SCHEDULES OF THE CONSTITUTION:

FIRST SCHEDULE

- 1.Names of the States and their territorial jurisdiction.
- 2.Names of the Union Territories and their extent'

SECOND SCHEDULE

Provisions relating to the emoluments, allowances, privileges and so on of

- 1.The President of India
- 2.The Governors of States
- 3.The Speaker and the Deputy Speaker of the Lok Sabha
- 4.The Chairman and the Deputy Chairman of the Rajya Sabha
- 5.The Speaker and the Deputy Speaker of the Legislative Assembly in the states
- 6.The Chairman and the Deputy Chairman of the Legislative Council in the states
- 7.The Judges of the Supreme Court
- 8.The Judges of the High Courts

THIRD SCHEDULE

Forms of Oaths or Affirmations of members of legislatures, ministers and judges

FOURTH SCHEDULE

Allocation of seats in the Rajya Sabha to the states and the union territories

FIFTH SCHEDULE

Provisions relating to the administration and control of scheduled areas and scheduled tribes

SIXTH SCHEDULE

Administration of tribal areas of north-eastern states

SEVENTH SCHEDULE

Distribution of powers between the Union and the States government in terms of Union List, State List and Concurrent List.

EIGHTH SCHEDULE

Languages recognized by the Constitution. Originally, it had 14 languages but presently there are 22 languages

NINTH SCHEDULE

Validation of certain acts and regulations
This schedule was added by the 1st Amendment (1951)

TENTH SCHEDULE

Provisions relating to disqualification of the members of Parliament and State Legislatures on the ground of defection.

This schedule was added by the 52nd Amendment Act of 1985, also known as Anti defection Law

ELEVENTH SCHEDULE

Specifies the powers, authority and responsibilities of Panchayats. It has 29 matters.

This schedule was added by the 73rd Amendment Act of 1992

TWELFTH SCHEDULE

Specifies the powers, authority and responsibilities of Municipalities. It has 18 matters.

This schedule was added by the 74th Amendment Act of 1992

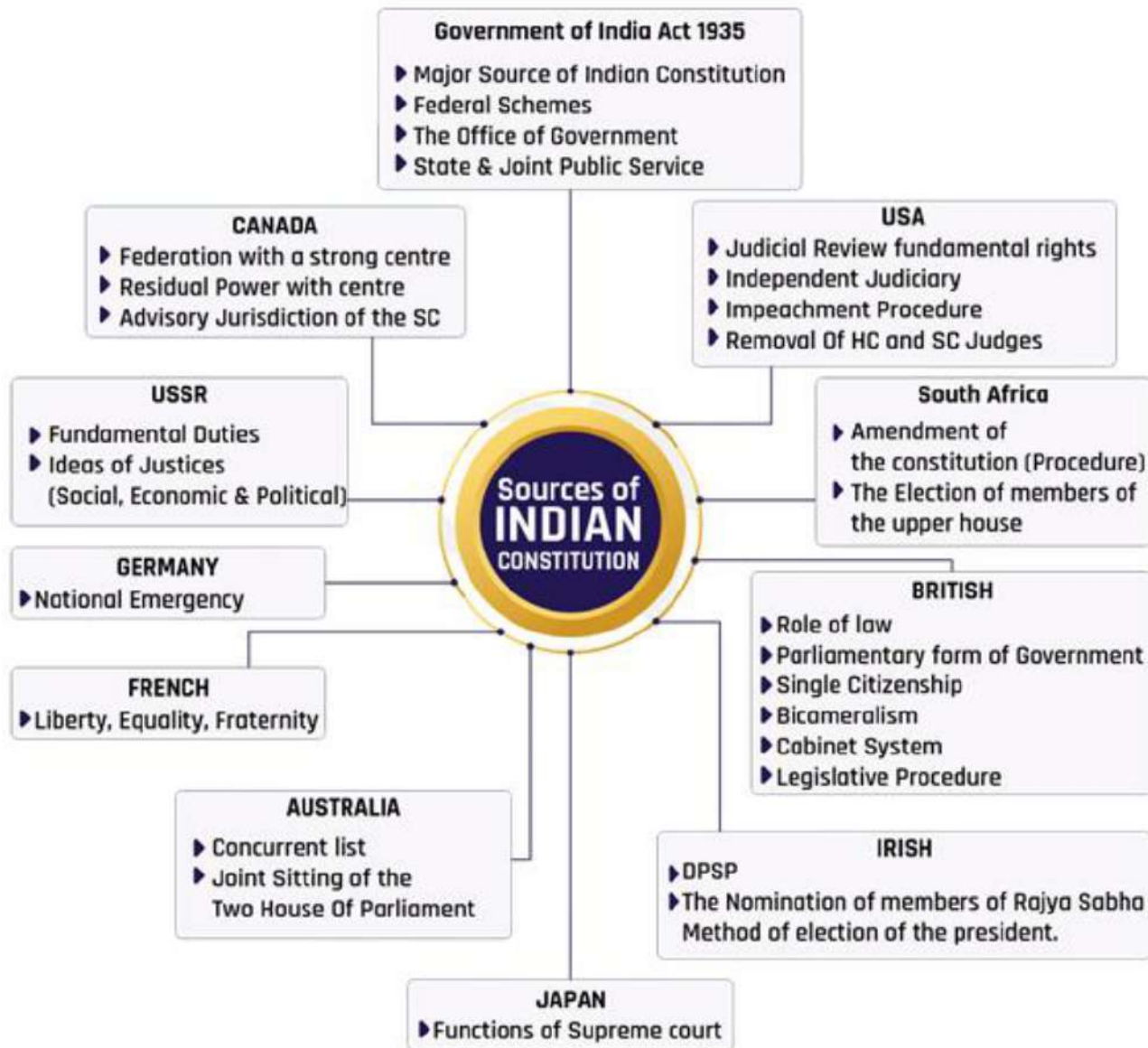
Sources of Indian Constitution

The Indian Constitution is borrowed from almost all the major countries of the world but has its own unique features too. Major sources are:

1. Government of India Act of 1935 - Federal Scheme, Office of Governor, Judiciary, Public Service Commission, Emergency provisions and administrative details.
2. British Constitution – Parliamentary System, Rule of law, Lagislative Procedure, Single Citizenship, Cabinet System, Prerogative Writs, Parliamentary Privileges and Bicameralism.
3. US Constitution – Fundamental rights, independence of judiciary, judicial review, impeachment of president, removal of Supreme court and high court judges and post of vice president.
4. Irish Constitution- Directive Principles of State Policy, nomination of members of Rajya Sabha and method of election of president.
5. Canadian Constitution- Federation with a strong centre, vesting of residuary power in the centre, appointment of state Governor by the centre and advisory jurisdiction of Supreme Court.
6. Australian Constitution- Concurrent list, joint sitting of two houses of Parliament.
7. Constitution of Germany- Suspension of fundamental rights during emergency.
8. French Constitution- Republic and ideals of liberty, equality and fraternity in the Preamble.
9. South African Constitution- Procedure for amendment of the constitution and election of members of Rajya Sabha.

10. Japanese Constitution- Procedure established by Law.

11. Constitution of former USSR: Procedure of five-yearplan, fundamental duties, ideals of justice in Preamble.



PREAMBLE:

Introduction:

- ✓ A preamble is an introductory statement in a document that explains the document's philosophy and objectives.
- ✓ In a Constitution, it presents the intention of its framers, the history behind its creation, and the core values and principles of the nation.

THE CONSTITUTION OF INDIA PREAMBLE

WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a '**[SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC]**' and to secure to all its citizens :

JUSTICE, social, economic and political;

LIBERTY of thought, expression, belief, faith and worship;

EQUALITY of status and of opportunity and to promote among them all;

FRATERNITY assuring the dignity of the individual and the ²[unity and integrity of the Nation];

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949 do **HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.**

1. Subs. by the Constitution (Forty-second Amendment) Act, 1976, Sec.2, for "Sovereign Democratic Republic" (w.e.f. 3.1.1977)
2. Subs. by the Constitution (Forty-second Amendment) Act, 1976, Sec.2, for "Unity of the Nation" (w.e.f. 3.1.1977)

The preamble basically gives idea of the following thin:

- ✓ Source of the Constitution
- ✓ Nature of Indian State
- ✓ Statement of its objectives
- ✓ Date of its adoption

History:

- ✓ The ideals behind the Preamble to India's Constitution were laid down by Jawaharlal Nehru's Objectives Resolution, adopted by the Constituent Assembly on January 22, 1947.
- ✓ Although not enforceable in court, the Preamble states the objectives of the Constitution, and acts as an aid during the interpretation of Articles when language is found ambiguous.

Components:

- ✓ It is indicated by the Preamble that the source of authority of the Constitution lies with the people of India.
- ✓ Preamble declares India to be a sovereign, socialist, secular and democratic republic.
- ✓ The objectives stated by the Preamble are to secure justice, liberty, equality to all citizens and promote fraternity to maintain unity and integrity of the nation.
- ✓ The date is mentioned in the preamble when it was adopted i.e. November 26, 1949.

Key words:

- ✓ We, the people of India: It indicates the ultimate sovereignty of the people of India. Sovereignty means the independent authority of the State, not being subject to the control of any other State or external power.
- ✓ Sovereign: The term means that India has its own independent authority and it is not a dominion of any other external power. In the country, the legislature has the power to make laws which are subject to certain limitations.



- ✓ **Socialist:** The term means the achievement of socialist ends through democratic means. It holds faith in a mixed economy where both private and public sectors co-exist side by side.
- ✓ It was added in the Preamble by 42nd Amendment, 1976.
- ✓ **Secular:** The term means that all the religions in India get equal respect, protection and support from the state.
- ✓ It was incorporated in the Preamble by 42nd Constitutional Amendment, 1976.
- ✓ **Democratic:** The term implies that the Constitution of India has an established form of Constitution which gets its authority from the will of the people expressed in an election.
- ✓ **Republic:** The term indicates that the head of the state is elected by the people. In India, the President of India is the elected head of the state.

The factors which help in achieving this objective are:

- ✓ **Justice:** It is necessary to maintain order in society that is promised through various provisions of Fundamental Rights and Directive Principles of State Policy provided by the Constitution of India. It comprises three elements, which is social, economic, and political.
- ✓ **Equality:** The term 'Equality' means no section of society has any special privileges and all the people have given equal opportunities for everything without any discriminations. Everyone is equal before the law.
- ✓ **Liberty:** The term 'Liberty' means freedom for the people to choose their way of life, have political views and behavior in society. Liberty does not mean freedom to do anything, a person can do anything but in the limit set by the law.
- ✓ **Fraternity:** The term 'Fraternity' means a feeling of brotherhood and an emotional attachment with the country and all the people. Fraternity helps to promote dignity and unity in the nation.
- ✓ **Importance of Objectives:** It provides a way of life. It includes fraternity, liberty, and equality as the notion of a happy life and which can not be taken from each other.



Status of Preamble:

- ✓ The preamble being part of the Constitution is discussed several times in the Supreme Court. It can be understood by reading the following two cases.
- ✓ Berubari Case: It was used as a reference under Article 143(1) of the Constitution which was on the implementation of the Indo-Pakistan Agreement related to the Berubari Union and in exchanging the enclaves which were decided for consideration by the bench consisting of eight judges.
- ✓ Through the Berubari case, the Court stated that 'Preamble is the key to open the mind of the makers' but it can not be considered as part of the Constitution. Therefore it is not enforceable in a court of law.
- ✓ Kesavananda Bharati Case: In this case, for the first time, a bench of 13 judges was assembled to hear a writ petition. The Court held that:
 - ✓ The Preamble of the Constitution will now be considered as part of the Constitution.
 - ✓ The Preamble is not the supreme power or source of any restriction or prohibition but it plays an important role in the interpretation of statutes and provisions of the Constitution.
- ✓ So, it can be concluded that preamble is part of the introductory part of the Constitution.
- ✓ In the 1995 case of Union Government Vs LIC of India also, the Supreme Court has once again held that Preamble is the integral part of the Constitution but is not directly enforceable in a court of justice in India.

Amendment of the Preamble:

- ✓ 42nd Amendment Act, 1976: After the judgment of the Kesavanand Bharati case, it was accepted that the preamble is part of the Constitution.
- ✓ As a part of the Constitution, preamble can be amended under Article 368 of the Constitution, but the basic structure of the preamble can not be amended.
- ✓ Because the structure of the Constitution is based on the basic elements of the Preamble. As of now, the preamble is only amended once through the 42nd Amendment Act, 1976.
- ✓ The term 'Socialist', 'Secular', and 'Integrity' were added to the preamble through 42nd Amendment Act, 1976.
- ✓ 'Socialist' and 'Secular' were added between 'Sovereign' and 'Democratic'.

- ✓ 'Unity of the Nation' was changed to 'Unity and Integrity of the Nation'.

Facts to Know:

- ✓ Article 394 of the Constitution states that Articles 5, 6, 7, 8, 9, 60, 324, 367, 379 and 394 came into force since the adoption of the Constitution on 26th November 1949 and the rest of the provisions on 26th January 1950.
- ✓ The concept of Liberty, Equality, and Fraternity in our Preamble was adopted from the French Motto of the French Revolution.

Union & its Territory:

- ✓ Articles 1 to 4 under Part I of the Constitution describe the Union and its Territory.
- ✓ Article 1 (1) states that India, that is Bharat, shall be a Union of States.
- ✓ Article 1 (2) states that the States and the territories thereof shall be as specified in the First Schedule.
- ✓ Article 1 (3) states that the territory of India shall comprise –
 - ✓ The territories of the States;
 - ✓ The Union territories specified in the First Schedule; and Such other territories as may be acquired.
- ✓ There are a total of 29 States, 6 Union Territories, and 1 National Capital Territory (as shown in the map given above).
- ✓ Article 2 states that the Parliament may by law admit into the Union, or establish new States on such terms and conditions as it thinks fit.
- ✓ Article 3 states that the Parliament may by law form a new State by separation of a territory from any State or by uniting two or more States or parts of States or by uniting any territory to a part of any State.
- ✓ Article 4 states that any law referred to in Article 2 or Article 3 shall contain such provisions for the amendment of the First Schedule and the Fourth Schedule as may be necessary to give effect to the provisions of the law and may also contain such

supplemental, incidental, and consequential provisions (including provisions as to representation in Parliament and in the Legislature or Legislatures of the State or States affected by such law) as the Parliament may deem necessary.

Definition of State:

Article 12 defines the state in the following manner.

- ✓ In this part, unless the context otherwise requires, “the State” includes the Government and Parliament of India and the Government and the Legislature of each of the States and all local or other authorities within the territory of India or under the control of the Government of India.
- ✓ Definition of state is inclusive and may include other bodies than executive, legislature of union and states which have been enumerated explicitly in the article 12.
- ✓ Any such authority which has power to make any law, pass any order, make an regulation, bye-laws etc. come under definition of state. Thus Panchayats, municipalities, district boards and other statutory, constitutional bodies come within the definition of state.

CITIZENSHIP:

- ✓ The Constitution of India provides for a single and uniform citizenship for the whole of India.
- ✓ Articles 5 to 11 under Part II of the Constitution deals with the citizenship.
- ✓ The Citizenship Act of 1955 provides for acquisition and loss of citizenship after the commencement of the Constitution.

This Act has been amended so far six times by the following Acts:

1. The Citizenship (Amendment) Act, 1986.
2. The Citizenship (Amendment) Act, 1992.
3. The Citizenship (Amendment) Act, 2003.
4. The Citizenship (Amendment) Act, 2005.
5. The Citizenship (Amendment) Act, 2015.
6. The Citizenship (Amendment) Act, 2019.

- ✓ Parliament shall have the power to make any provision with respect to the acquisition and termination of citizenship and all other matters relating to citizenship (Article 11).
- ✓ Citizens are full members of the Indian State. They enjoy all civil and political rights.
- ✓ Aliens, on the other hand, are the citizens of some other state and hence, do not enjoy all the civil and political rights.
- ✓ They are of two categories—friendly aliens and enemy aliens. Enemy aliens enjoy lesser rights than the friendly aliens, Eg, they do not enjoy protection against arrest and detention (Article 22).
- ✓ The Constitution confers the following rights and privileges on the citizens of India (and denies the same to aliens):
 - 1.Right against discrimination on grounds of religion, race, caste, sex or place of birth (Article 15).
 - 2.Right to equality of opportunity in the matter of public employment (Article 16).
 - 3.Right to freedom of speech and expression, assembly, association, movement, residence and profession (Article 19).
 - 4.Cultural and educational rights (Articles 29 and 30).
 - 5.Right to contest for the membership of the Parliament and the state legislature.
 - 6.Right to vote in elections to the Lok Sabha and state legislative assembly.

Acquisition of Citizenship

- According to the Citizenship Act, 1955, the citizenship could be acquired through any of the following methods.
- 1.By Birth: All persons born in India on or after January 26, 1950 are treated as citizens by birth.
- 2.By Descent: A person born outside India on or after January 26, 1950 shall be a citizen of India by descent, if his father is a citizen of India at the time of his birth.
- 3.By Registration: A person can acquire citizenship of India by registration with appropriate authority.

- 4.By Naturalisation: A foreigners can acquire Indian citizenship, on application for naturalization to the Government of India.
- 5.By Incorporation of Territory: In the event of a certain territory being added to the territory of India, the Government of India shall specify the persons of that territory who shall be citizen of India.

Loss of Citizenship

- The Citizenship Act of 1955 prescribes three ways of losing citizenship whether acquired under the Act or prior to it under the Constitution, viz, renunciation, termination and deprivation.
- 1.By Renunciation: It can be voluntarily renounced by a citizen
- 2.By Termination: When an Indian citizen voluntarily acquires the citizenship of another country, his Indian citizenship automatically terminates. This provision, however, does not apply during a war in which India is engaged.
- 3.By Deprivation: It is a compulsory termination of Indian citizenship by the Central government, if:
 - (i)..The citizen has obtained the citizenship by fraud.
 - (ii). The citizen has, within five years after registration or naturalization, been imprisoned in any country for two years.
 - (iii)The citizen has unlawfully traded or communicated with the enemy during a war;

FUNDAMENTAL RIGHTS:

- ✓ The Fundamental Rights are enshrined in Part III of the Constitution from Articles 12 to 35.
- ✓ Part III of the Constitution is rightly described as the Magna Carta of India.
- ✓ Originally, the Constitution provided for seven Fundamental Rights. The right to property was deleted from the list of Fundamental Rights So at presently only six Fundamental Rights.

- ✓ The right to property (Article 31) was deleted from the list of Fundamental Rights by the 44th Amendment Act, 1978. It is made a legal right under Article 300-A in Part XII of the Constitution.

Part III of the Indian Constitution guarantees six fundamental rights to all the citizens

- 1.Right to Equality (Articles 14–18),
 - 2.Right to Freedom (Articles 19–22),
 - 3.Right against Exploitation (Articles 23–24),
 - 4.Right to Freedom of Religion (Articles 25–28),
 - 5.Cultural and Educational Rights (Articles 29–30)
 - 6.Right to Constitutional Remedies (Article 32).
-
- ✓ Fundamental rights can also be suspended during the operation of a National Emergency except the rights guaranteed by Articles 20 and 21.
 - ✓ Article 17 abolishes ‘untouchability’ and forbids its practice in any form.
 - ✓ Article 21 A declares that the State shall provide free and compulsory education to all children of the age of six to fourteen years. This provision was added by the 86th Constitutional Amendment Act of 2002.
 - ✓ Article 24 prohibits the employment of children below the age of 14 years in any factory, mine or other hazardous activities like construction work or railway.
 - ✓ Article 16 provides for equality of opportunity for all citizens in matters of employment or appointment to any office under the state.
 - ✓ Article 33 empowers the Parliament to restrict or abrogate the fundamental rights of the members of armed forces, paramilitary forces, police forces, intelligence agencies and analogous forces.
 - ✓ Right to constitutional remedies (Articles - 32)
 - ✓ A writ is an order or command issued by a court in writing under its seal. It is in the nature of a command or prohibition from performing certain acts that are specified in the orders of the court. Both the Supreme Court and the High Courts are empowered to issue five kinds of writs.

That is why **the Supreme Court** is called the “**Guardian of the Constitution**”.

1. Habeas Corpus: Safeguards people from illegal arrests.
2. Mandamus: It protects the petitioner who requires legal help to get his work done by respective public authorities.
3. Prohibition: It prohibits a subordinate court from acting beyond its jurisdiction.
4. Certiorari: It quashes an order issued by a subordinate court by overstepping its jurisdiction
5. Quo Warranto: It prevents usurpation of public office through illegal manner.

- ✓ The Supreme Court (under Article 32) and the high courts (under Article 226) can issue the writs of habeas corpus, mandamus, prohibition, certiorari and quo-warranto.
- ✓ According to Dr. Ambedkar, **Article 32** is “**the heart and soul of the Constitution**”.

DIRECTIVE PRINCIPLES OF STATE POLICY

- ✓ The Directive Principles of State Policy are enumerated in Part IV of the Constitution from Articles 36 to 51.
- ✓ The framers of the Constitution borrowed this idea from the Irish Constitution of 1937, which had copied it from the Spanish Constitution.
- ✓ The Constitution of India does not contain any classification of Directive Principles. However, on the basis of their content and direction, they can be classified into three broad categories, viz, socialistic, Gandhian and liberal-intellectual. These principles are not enforceable by the courts.
- ✓ Dr. B.R. Ambedkar described these principles as ‘novel features’ of the Indian Constitution.
- ✓ The 86th Amendment Act of 2002 changed the subject -matter of Article 45 and made elementary education a fundamental right under Article 21 A.
- ✓ The Parliament can amend the Fundamental Rights for implementing the Directive Principles, so long as the amendment does not damage or destroy the basic structure of the Constitution.

FUNDAMENTAL DUTIES

- ✓ The Fundamental Duties in the Indian Constitution are inspired by the Constitution of former USSR.
- ✓ In 1976, the Government of India set up the Swaran Singh Committee to make recommendations on fundamental duties. The 42nd Amendment Act of 1976 added some responsibilities of citizens to our Constitution called the Fundamental Duties.
- ✓ This amendment added a new part, namely, Part IVA to the Constitution.
- ✓ The Part IV-A of the Constitution (which consists of only one Article—51-A) specifies the eleven Fundamental Duties

LIST OF FUNDAMENTAL DUTIES

According to Article 51 A, it shall be the duty of every citizen of India

- 1.To abide by the constitution and respect its ideals and institutions, the National Flag and the National Anthem.
- 2.To cherish and follow the noble ideals which inspired the national struggle for freedom
- 3.To uphold and protect the sovereignty, unity and integrity of India
- 4.To defend the country and render national service when called upon to do so
- 5.To promote harmony and the spirit of common brotherhood among all the people of India transcending religious, linguistic and regional or sectional diversities and to renounce practices derogatory to the dignity of women
- 6.To value and preserve the rich heritage of our composite culture
- 7.To protect and improve the natural environment including forests, lakes, rivers and wildlife, and to have compassion for living creatures
- 8.To develop scientific temper, humanism and the spirit of inquiry and reform
- 9.To safeguard public property and to abjure violence



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10. To strive towards excellence in all spheres of individual and collective activity, so that the nation constantly rises to higher levels of endeavour and achievement.

11. To provide opportunities for education to his child or ward between the age of six and fourteen years. This duty was added by the 86th Constitutional Amendment Act, 2002.

EMERGENCY PROVISIONS:



National Emergency (Article 352)

- ✓ Emergency due to war, external aggression or armed rebellion (Article 352). This is popularly known as National Emergency.
- ✓ The proclamation of Emergency must be approved by both the Houses of Parliament within one month from the date of its issue.
- ✓ Emergency approved by both the Houses of Parliament, the emergency continues for six months, and can be extended to an indefinite period with an approval of the Parliament for every six months.
- ✓ A proclamation of emergency may be revoked by the President at any time by a subsequent proclamation. Such a proclamation does not require parliamentary approval.
- ✓ Articles 358 and 359 describe the effect of a National Emergency on the Fundamental Rights. Article 358 deals with the suspension of the Fundamental Rights guaranteed by

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Article 19, while Article 359 deals with the suspension of other Fundamental Rights (except those guaranteed by Articles 20 and 21).

- ✓ This type of emergency has been declared three times so far: in 1962, 1971 and 1975.

State emergency (Article 356)

- ✓ Emergency due to the failure of the constitutional machinery in the states (Article 356). This is popularly known as President's Rule.
- ✓ A proclamation imposing President's Rule (Article 356) must be approved by both the Houses of Parliament within two months from the date of its issue.
- ✓ President's rule (Article 356) approved by both the Houses of Parliament, the President's Rule continues for six months. It can be extended for a maximum period of three years with the approval of the Parliament every six months.
- ✓ A proclamation of President's Rule may be revoked by the President at any time by a subsequent proclamation. Such a proclamation does not require parliamentary approval.
- ✓ The State is governed by the Governor on behalf of the President. For the first time, the President's Rule was imposed in Punjab in 1951.

Financial emergency (Article 360)

- ✓ Article 360 empowers the president to proclaim a Financial Emergency if he is satisfied that a situation has arisen due to which the financial stability or credit of India or any part of its territory is threatened.
- ✓ A proclamation declaring financial emergency must be approved by both the Houses of Parliament within two months from the date of its issue.
- ✓ Once approved by both the Houses of Parliament, the Financial Emergency continues indefinitely till it is revoked.
- ✓ A proclamation of Financial Emergency may be revoked by the president at any time by a subsequent proclamation. Such a proclamation does not require parliamentary approval.
- ✓ This type of emergency has not been declared in India so far

OFFICIAL LANGUAGES OF INDIA:

- ✓ Part XVII of the Indian Constitution deals with the official languages in Article 343 to 351.
- ✓ Article 343 (1) has mentioned that “The official language of the Union shall be Hindi in Devanagari script. The form of numerals to be used for the official purposes of the Union shall be the international form of Indian numerals.”
- ✓ English is an additional official language for union government along with Hindi.
- ✓ The Eighth Schedule to the Indian Constitution contains a list of 22 scheduled languages (Originally 14 languages).
- ✓ These are Assamese, Bengali, Bodo, Dogri, Gujarati, Hindi, Kannada, Kashmiri, Konkani, Mathili, Malayalam, Manipuri, Marathi, Nepali, Odia, Punjabi, Sanskrit, Santhali, Sindhi, Tamil, Telugu and Urdu. Sindhi was added by the 21st Amendment Act of 1967; Konkani, Manipuri and Nepali were added by the 71st
- ✓ Amendment Act of 1992; and Bodo, Dogri, Maithili and Santhali were added by the 92nd Amendment Act of 2003.
- ✓ The legislature of a state may adopt any one or more of the languages in use in the state or Hindi as the official language of that state.
- ✓ Until that is done, English is to continue as the official language of that state. Under this provision, most of the states have adopted the major regional language as their official language.

AMENDMENT OF THE CONSTITUTION

- ✓ Article 368 in Part XX of the Constitution deals with the powers of Parliament to amend the Constitution and its procedure.
- ✓ The Supreme Court ruled that the constituent power of Parliament under Article 368 does not enable it to alter the ‘basic structure’ of the Constitution (In the 1973, Kesavananda Bharati Case, the Supreme Court ruled that Parliament cannot alter the 'basic structure' of the Constitution).
- ✓ The procedures for amendment of the constitution are as follows:

- ✓ An amendment of the Constitution can be initiated only by the introduction of a bill for the purpose in either House of Parliament and not in the state legislatures.
- ✓
- ✓ The bill can be introduced either by a minister or by a private member and does not require prior permission of the president.
- ✓ The bill must be passed in each house by a special majority, that is, majority by more than 50 percent of the total membership of the house and a majority of two-thirds of the members of the house present and voting. Each house must pass the bill separately.
- ✓ After duly passed by both the houses of parliament and ratified by the state legislatures wherever necessary, the bill is forwarded to the President for assent. The President must give his assent to the bill. He can neither withhold his assent to the bill nor return the bill for reconsideration of the Parliament. After President's assent, the bill becomes an Act (i.e., A Constitutional Amendment Act)

Types of Amendments:

•The constitution can be amended in three ways

- 1.Simple majority of the parliament
- 2.Special majority of the parliament
- 3.Special majority of the parliament and the ratification of half of the state legislatures.

Parliamentary System :

- ✓ The democratic system of government can be divided into the parliamentary and the presidential system based on the relationship between the executive and the legislature.
- ✓ In a parliamentary system, executive is a part of legislature, which implements the law and plays an active role in framing it as well.
- ✓ In a parliamentary system, the head of the state may be a monarch or a president, but both of these positions are ceremonial. The head of the government, who is generally called as the Prime Minister, is the real head. Thus, all the real executive powers are vested in the Prime Minister.
- ✓ The parliamentary government is also called as the Cabinet government due to concentration of executive powers in the cabinet.

- ✓ Articles 74 and 75 deals with the parliamentary system at the centre and Article 163 and article 164 deals with the Parliamentary system at the states.

Elements and Features of Parliamentary System are;

1. **Nominal and Real Head**: The head of the state holds a ceremonial position and is the nominal executive. For example, the President.
2. In India, the **head of government** is the Prime Minister who is the real executive. Article 75 of the Indian constitution provides for a Prime Minister to be appointed by the president. According to Article 74, the Prime Minister headed council of ministers would aid and advise the President in the exercise of his functions.
3. **Executive is a Part of Legislature**: The Executive forms a part of the legislature. In India, the person should be a member of parliament to become a member of the executive. However, the constitution provides that a person can be appointed as a minister for a period of not more than six consecutive months if he is not a member of the parliament, after which the person ceases to be a minister.
4. **Majority Party Rule**: The party which wins majority seats in the elections of the Lower House forms the government. In India, the President invites the leader of the majority party in Lok Sabha to form the government. The President appoints the leader as the Prime Minister and the other ministers are appointed by the President on the advice of the Prime Minister. The President may invite a coalition of parties to form the government, in case, no party has got majority.
5. **Collective Responsibility**: The council of ministers are collectively responsible to the parliament. The lower house of parliament has an ability to dismiss a government by getting the no confidence motion passed in the house. In India, the government survives till the time it enjoys support of the majority of members in the Lok Sabha. Thus, Lok Sabha is empowered to introduce no-confidence motion against the government.
6. **Prime Minister as the Centre of Power**: In India, the Prime Minister is the real executive. He is the head of the government, the council of ministers and the ruling government. Thus, he has to play a significant and important role in the working of the government.
7. **A Parliamentary Opposition**: No government in the parliament can get hundred percent majority. The opposition plays an important role in checking the arbitrary use of authority by the political executive.

8. **Independent Civil Service:** The civil servants advice and implement decisions of the government. Civil servants hold permanent appointments based on merit-based selection process. They ensure continuity of employment even when the government changes. The civil service also ensures efficiency in execution of duties and responsibilities.

9. **Bicameral Legislature:** Most of the countries following parliamentary system, including India, have bicameral legislature. The members of the Lower House of all these countries are elected by the people. The Lower House can be dissolved, in case, the term of the government is over or there is no scope of government formation due to lack of majority in house. In India, the President can dissolve the Lok Sabha on recommendation of the Prime Minister.

10. **Secrecy:** The members of the executive in this system have to follow the principle of secrecy in matters such as proceedings, executive meetings, policymaking etc. In India, the ministers take oath of secrecy before entering their office.

Presidential Government :

1. **Separation of powers:** The independence of three organs of government from each other makes for efficiency in administration. Equally, the three organs are linked with each other by an elaborate system of checks and balances.

2. **Stability:** Presidential government is stable. The tenure of the President is fixed. He does not have to strain his nerves to remain in office. The President can formulate and easily implement long term policies. There is no danger of sudden fall of government. The administration becomes efficient and free from corruption.

3. **Expert Government:** The President can choose people with specialized knowledge as his Ministers/ Secretaries, without consideration of their party affiliations. Further, he is free to accept their advice or not. The ultimate power to take decisions rests with the President. Thus, quick decisions are made possible.

4. **Less influence of party system:** The evils of party system do not adversely affect the administration in presidential government. The President cannot be removed before the expiry of his tenure. Therefore, the parties do not waste their time in trying to dislodge the government.



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Reasons for Adopting Parliamentary System

1. Familiarity with the System
2. Preference to More Responsibility
3. Need to Avoid Legislative–Executive Conflicts
4. Nature of Indian Society

Federal System of Indian Constitution:

- ✓ Federalism is an institutional mechanism to accommodate two sets of polities, i.e., first is the center or national level and second is at the provincial or regional level. Both the sets of polities are autonomous in its own sphere.
- ✓ Each level of the polity has distinct powers and responsibilities and has a separate system of government.
- ✓ The details of this federalism or dual system of government are generally found in a written constitution.
- ✓ Written Constitution is considered to be supreme and also the source of the power of both sets of government.
- ✓ Certain subjects, which are the concern of a nation as a whole, for example, defense or currency, are the responsibility of the union or central government.
- ✓ On the other hand, regional or local matters are the responsibility of the regional or state government.
- ✓ In case of a conflict between the center and the state on any issue, the judiciary has the powers to resolve the disputes.
- ✓ Though the Indian Constitution does not use the word ‘federalism’ anywhere; however, the structure of Indian government is divided into two sets of governments i.e. For the entire nation known as the ‘**Union Government**’ (or central government) and For each unit or state known as the ‘**State Government.**’

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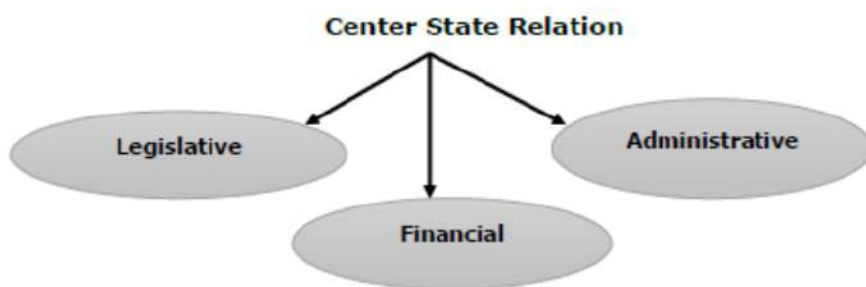


Subjects of Federal System :

- ✓ The Constitution clearly demarcates subjects, which are under the exclusive domain of the Union and those under the exclusive of States.
- ✓ Likewise, the Constitution describes three lists –
 1. Union List (subjects dealt by only Central Government);
 2. State List (subjects dealt normally by States only); and
 3. Concurrent List (both Union and State have the power to legislate these subjects).

Centre- State Relations:

- ✓ Articles 245 to 263 of Part XI and Articles 268 to 293 of Part XII describe three types of Center-State relations i.e. Legislative, Administrative, and Financial.



1. Legislative Relations (Article 245-255)
2. Administrative Relations (Article 256-263)
3. Financial Relations (Article 268-293)

Legislative Power Distribution

- ✓ Articles 245 to 255 in Part XI of the Constitution deal with the legislative relations between the Centre and the states. These include:
- ✓ Territorial extent of Central and state legislation
- ✓ Distribution of legislative subjects
- ✓ Parliamentary legislation in the state field;
- ✓ Centre's control over state legislation.

Territorial extent of Central and state legislation:

- ✓ The powers are distributed between the union and State governments territorially. The Union Government possess the powers over the entire territory of India while the States have jurisdiction over their own territories.
- ✓ The Central Government has extra territorial jurisdiction that means that its laws govern not only persons and property within India but also Indian citizens and their properties located in any corner of the world.

✓

Subject Distribution

The Constitution distributes the legislative subjects between the Union Government and States in an elaborate scheme. There are three Lists of distribution.

1. List I (Union List) contains the subjects and powers exclusively allotted to the union parliament. There are 100 subjects here including defense, foreign affairs, banking, currency

2. List II (State List) contains the subjects that are exclusively allotted to the State governments. There are 59 items including public order, and police, public health, local government, agriculture, forests, fisheries

3. List III (Concurrent List) contains 52 items including criminal law and procedure, civil procedure, marriage, education. This list is called as Concurrent List. Both the union and State governments have powers over these subjects. But when there occurs a clash between the union and State governments the law of the parliament will prevail

4. There is also another category called residuary powers. Any subject not mentioned in the above three lists will automatically come under the jurisdiction of the Union Government.

Administrative Relations

- ✓ Articles 256 to 263 in Part XI of the Constitution deal with the administrative relations between the Centre and the states.

Financial Relations

- ✓ Articles 268 to 293 in Part XII of the Constitution deal with Centre-state financial relations.
- ✓ Finances are very fundamental in the successful operation of federal system. Indian Constitution distributes financial powers between the union and States in a comprehensive arrangement that is broadly modeled on the 1935 Government of India Act.
- ✓ There are two sources of revenue distributed by the Constitution namely Tax Revenue and Non-tax Revenue.
- ✓ The president of India constitutes a Finance Commission once in every five years. The article 280 of the Constitution describes the composition of the Finance Commission.

Sarkaria Commission:

- ✓ In 1983, the Central government appointed a three-member Commission on Centre-state relations under the chairmanship of R.S. Sarkaria, a retired judge of the Supreme Court.
- ✓ The commission was asked to examine and review the working of existing arrangements between the Centre and states in all spheres and recommend appropriate changes and measures.
- ✓ The Commission made 247 recommendations to improve Centre-state relations.

Punchhi Commission

- ✓ Second commission on Centre-State Relations
- ✓ Constituted on April 2007
- ✓ Under the chairmanship of Madan Mohan Punchhi, former Chief Justice of India
- ✓ Took extensive help from the Sarkaria Commission report, the National Commission to Review the Working of the Constitution (NCRWC) report and the Second Administrative Reforms Commission report.
- ✓ In all, the Punchhi Commission made over 310 recommendations, touching upon several significant areas in the working of Centre-state relations.

Inter State Relations

- ✓ The successful functioning of the Indian federal system depends not only on the harmonious relations and close cooperation between the Centre and the States but also between States inter
- ✓ Hence Constitution makes the following provisions with regard to inter-state comity or harmony:
 1. Adjudication of inter-state water disputes.
 2. Coordination through inter-state councils.
 3. Mutual recognition of public acts, records, and judicial proceedings.
 4. Freedom of inter-state trade, commerce, and intercourse.

Zonal Councils

- ✓ Zonal Councils aim at promoting cooperation & coordination between States, UTs and the Centre.
- ✓ They discuss & make recommendations regarding common matters.
- ✓ They are only deliberative and advisory bodies.
- ✓ These are statutory bodies created by States Reorganization Act of 1956.

The Act divided the country into **5 zones**:

1. Northern Zone
2. Central Zone
3. Eastern Zone
4. Western Zone
5. Southern Zone

Each zonal council consist of:

- ✓ From Centre – Home Minister (acts as a chairman)
- ✓ From States – CM of all States in Zone + 2 other ministers (Each CM acts as a Vice-Chairman by rotation, holding office for a period of 1 year at a time)
- ✓ Administrators of all UTs in the zone
- ✓ Following can be associated as advisors (without right to vote)
- ✓ One person nominated by Planning Commission.
- ✓ Chief Secretary of each state in the zone.
- ✓ Development Commissioner of each state in the Zone.

Union Executive

- ✓ The organ of a government that primarily looks after the function of implementation and administration is known the Executive.
- ✓ The Executive is the branch of Government accountable for the implementation of laws and policies legislated by the legislature.
- ✓ In the Parliamentary form of executive, the Prime Minister is the head of the government and the head of the State may be Monarch (Constitutional Monarchy, e.g. UK) or President (Parliamentary Republic, e.g. India).
- ✓ In a Semi-Presidential System, the President is the head of the State and the Prime Minister is the head of the government, e.g. France.
- ✓ In a Presidential System, the President is the head of the State as well as the head of government, e.g. the US.



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INDIAN administrative Government



UNION GOVERNMENT

House of people (Lok Sabha)

Max. Members **552**

Members at present **545**

Minimum Age **25**

Max. Time Duration **5**

Responsible Incumbent -

Presiding officer of Lok Sabha



Council of state ((Rajya Sabha))

Max. Members **250**

Members at present **245**

Minimum Age **35**

Max. Time Duration **6yr**

Responsible Incumbent

Vice President of India



STATE GOVERNMENTS

Vidhan Sabha (Legislative assembly)

Members **60 to 500**

Minimum Age **25**

Max. Time Duration **5**

Responsible Incumbent -

Presiding officer of Lok Sabha



Chief Minister



Vidhan Parishad (Legislative Council)

Members can't be more than **1/3rd** of vidhan Sabha

Minimum Age **35**

Max. Time Duration **6yr**

Only **6 states** has legislative council

LOCAL GOVERNMENTS

Zilla Parishad

head
District Magistrate
(CEO, IAS)



Members **50 to 70**

Max. Time Duration **5**

The Chairmen of all the Panchayat Samitis form the members of Zilla Parishad

RURAL

Block (tahsil)

(Panchayat samiti)
chief official is called the
tehsildar



Villages (Gram Panchayat)

Sarpanch

(Gram Sabha)



Municipal corporation (Mahanagar Palika)

Metropolitan City
population **<1 million**
head -**Mayor**



Wards

Councillors

Sabha (Mohalla)



URBAN

Municipality (Nagar Palika)

population **< 0.1 million**
Nagar palika representative
(**President**)



Wards

Wards representative

Sabha (Mohalla)



City Council (Nagar Panchayat)

11,000 < Population < 25,000
committee consists of
chairman with ward members



Wards

Wards member

Sabha (Mohalla)



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CENTRAL GOVERNMENT

PRESIDENT

- ✓ The Union executive consists of the President, the Vice-President, the Prime Minister, the council of ministers and the attorney general of India
- ✓ The President is the head of the Indian State. He is the supreme commander of the armed forces.
- ✓ He is the First Citizen of India and acts as the symbol of Unity, Integrity and Solidarity of the Nation.
- ✓ According to Article 53 of the constitution, the executive power of the Union shall be vested in the President which shall be exercised by him directly or through officers subordinate to him in accordance with Constitution

A person to be eligible for election as President should fulfill the following qualifications:

1. He should be a citizen of India.
2. He should have completed 35 years of age.
3. He should be qualified for election as a member of the Lok Sabha.
4. He should not hold any office of profit under the Union government or any state government or any local authority or any other public authority

- ✓ The President is elected by an electoral college in accordance with the system of proportional representation by means of single transferable vote.
- ✓ The President is elected not directly by the people but by members of electoral college consisting of

1. The elected members of both the Houses of Parliament,
2. The elected members of the legislative assemblies of the states,
3. The elected members of the legislative assemblies of the Union Territories of Delhi and Puducherry

- ✓ The President holds office for a term of five years.
- ✓ The oath of office to the President is administered by the Chief Justice of India and in his absence in the presence of the senior most judge of the Supreme Court.



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- ✓ The President can resign from his office at any time by addressing the resignation letter to the Vice- President.
- ✓ When a vacancy occurs in the office of the President due to his resignation, removal, death or otherwise, the Vice-President acts as the President until a new President is elected.
- ✓ In case the office of Vice-President is vacant, the Chief Justice of India or if his office is also vacant, the Senior most judge of the Supreme Court acts as the President or discharges the functions of the President.
- ✓ He can declare war or conclude peace, subject to the approval of the Parliament
- ✓ Article 123 of the Constitution empowers the President to promulgate ordinances during the recess of Parliament.
- ✓ The President has been made only a nominal Executive, the real executive being the council of ministers headed by the prime minister.

FUNCTIONS AND POWERS OF THE PRESIDENT EXECUTIVE POWERS:

- ✓ Article 77 requires that every executive action of the Union shall be taken in the name of the President
- ✓
- ✓ He appoints the Prime Minister and the other members of the Council of Ministers, distributing portfolios to them on the advice of the Prime Minister.
- ✓
- ✓ He is responsible for making a wide variety of appointments. These include the appointment of Governors of States, the Chief Justice and other Judges of the Supreme Court and high Courts, the Attorney General, the Comptroller and Auditor General, the Chief Election Commissioner and other Election Commissioners the Chairman and other Members of the Union Public Service Commission ,Ambassadors and High Commissioners to other countries
- ✓ He can declare any area as scheduled area and has powers with respect to the administration of scheduled areas and tribal areas.

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LEGISLATIVE POWERS

- ✓ He inaugurates the session of the Parliament by addressing it after the general election and also at the beginning of the first session each year.
- ✓ He may send messages to either House of the Parliament with respect to a bill pending in the House.
- ✓ A bill passed by the Parliament can become an act only if it receives the assent of the President
- ✓ President terminates the sessions of both or any of the Houses of Parliament. He can even dissolve the Lok Sabha before the expiry of the term of the House.
- ✓ He nominates 12 persons who are eminent in literature, science, sports, art and social service to the Rajya Sabha. He can also nominate two persons belonging to Anglo-Indian Community to the Lok Sabha
- ✓ He can promulgate ordinances when the Parliament is not in session. These ordinances must be approved by the Parliament within six weeks from its reassembly. He can also withdraw an ordinance at any time.

FINANCIAL POWER:

- ✓ Annual Budget of the Central Government is presented before the Lok Sabha by the Union Finance Minister only with the permission of the President. He causes to be laid before the Parliament the annual financial statement (the Union Budget)
- ✓ Money bills can be introduced in the Parliament only with his prior recommendation.
- ✓ He constitutes a finance commission after every five years.
- ✓ The Constitution of India places the Contingency Fund of India is at the disposal of the President. No demand for a grant can be made except on his recommendation. He can make advances out of the contingency fund of India to meet any unexpected expenditure.

JUDICIAL POWERS

- ✓ Article 72 confers on the President power to grant pardons, reprieves, respites or remissions of punishment, or to commute the sentence of any person convicted of an offence.
- ✓ He appoints the Chief Justice and the judges of Supreme Court and high courts.

MILITARY POWERS

- ✓ Article 53(2) lays down that “the supreme command of the Defence Force of the Union shall be vested in the President and the exercise thereof shall be regulated by law”.

DIPLOMATIC POWERS

- ✓ The international treaties and agreements are negotiated and concluded on behalf of the President
- ✓ The President appoints Indian diplomats to other countries and receives foreign diplomats posted to India.

EMERGENCY POWERS

- ✓ The President has been empowered by the Constitution to proclaim National Emergency under Article 352, State Emergency under Article 356 and Financial Emergency under Article 360.
- ✓ The emergency powers of the President of India are specified in Part XVIII of the Indian Constitution.

REMOVAL OF THE PRESIDENT

- ✓ Article. 61 of the Constitution lays down a detailed procedure for the impeachment of the President.
- ✓ The impeachment charges can be initiated by either House of Parliament. These charges should be signed by one-fourth members of the House (that framed the charges), and a 14 days' notice should be given to the President.

VICE-PRESIDENT

- ✓ Article 63 of the constitution provides for a Vice President of India. This office has been created to maintain the political continuity of the state.
- ✓ The Vice-President of India occupies the second highest office in the country.
- ✓ Qualification for the election as Vice President

1. He should be a citizen of India.
2. He must have completed the age of 35 years.
3. He must not hold any office of profit under the Union, State or local Government.
4. He should have the other qualifications required to become a member of the Rajya Sabha.

- ✓ The Vice-President of India is elected by the elected members of both Houses of Parliament by secret ballot on the basis of proportional representation system, by means of the single transferable vote.
- ✓ The term of office of the Vice President is five years. He is eligible for re-election.
- ✓ The Vice-President is the ex-officio Chairman of the Rajya Sabha (Article 64 of the Indian Constitution). He presides over the meetings of the Rajya Sabha.
- ✓ He acts as President when a vacancy occurs in the office of the President due to his resignation, removal, and death or otherwise.

CENTRAL COUNCIL OF MINISTERS:

- ✓ Article 75 says only that the Prime Minister shall be appointed by the president.
- ✓ Prime Minister may be a member of any of the two Houses of parliament Lok shaba or Rajya shaba.
- ✓ Morarji Desai, Charan Singh, V.P. Singh, P.V. Narasimha Rao, H.D. Deve Gowda and Narendra Modi— became Prime Ministers after being Chief Ministers of their respective States.
- ✓ The council of ministers headed by the prime minister.

- ✓ The Prime Minister is appointed by the President, while the other ministers are appointed by the President on the advice of the Prime Minister.
- ✓
- ✓ A person who is not a member of the Parliament can be appointed as a minister but he has to get himself elected to the Parliament within six months.
- ✓ A minister who is a member of one House of Parliament has the right to speak and to take part in the proceedings of the other House also, but he can vote only in the House of which he is a member.
- ✓ The total number of ministers, including the Prime Minister, in the Council of Ministers shall not exceed 15% of the total strength of the Lok Sabha. This provision was added by the 91st Amendment Act of 2003.
- ✓ Article 75 clearly states that the council of ministers is collectively responsible to the Lok Sabha

The Prime Minister of India:

- ✓ It is mentioned in the Constitution that – the executive powers of the President are to be exercised by the Council of Ministers.
- ✓ “There shall be a Council of ministers with the Prime Minister at the head to aid and advise the President in the exercise of his functions”. Here the word “shall” means that the President cannot function without the Council of Ministers.
- ✓ This implies that, the President is the constitutional head of State, but the real head of the government is the PM.
- ✓ The Prime Minister has a special status both in the Government and in the Parliament. This makes him/her the most powerful functionary. His/her position and powers depend upon his/her personality.

Appointment of the Prime Minister

- ✓ The Prime Minister is appointed by the President, but he does not have his discretion in that appointment.
- ✓ Normally the President has to invite leader of the majority party in the Lok Sabha to form the government.

- ✓ In case no single party gets a clear majority, the President invites the individual commanding the support of two or more parties which make up majority in the Lok Sabha.
- ✓ The Prime Minister is usually a leader of the majority party in Lok Sabha. However, there have been cases in past where a member of Rajya Sabha was appointed as the Prime Minister.
- ✓ For example, Mrs. Indira Gandhi was first appointed as Prime Minister in 1966, and Mr. I. K. Gujral in 1997 or when Rajya Sabha member Dr. Manmohan Singh became the Prime Minister in 2004. In 1996 H.D. Deve Gowda was not a member of any House yet he was appointed PM, he later entered the Rajya Sabha.
- ✓ The Prime Minister decides portfolios of the Ministers, and can alter these at his will. The Prime Minister presides over the meetings of the Cabinet.
- ✓ The Prime Minister has the authority to reshuffle the portfolios of the Ministers or even ask for their resignation.
- ✓ In case of resignation or death of the Prime Minister the entire Council of Ministers also goes out of office. This is because the Council of Ministers is created by the Prime Minister, who also heads it. The entire Council of Ministers is responsible to the Lok Sabha.

Term of the Prime Minister

- ✓ Once appointed, the Prime Minister holds office so long as he/she enjoys the support of the majority of members of Lok Sabha.
- ✓ He cannot be removed by the President. If he loses the majority support in the Lok Sabha, he should resign or the President must dismiss him.

Powers and Functions of the Prime Minister

With respect to Council of Ministers

- ✓ As head of the Union council of ministers PM enjoys the following powers :
- ✓ The Prime Minister recommends persons who can be appointed as ministers by the president.

- ✓ The President can appoint only those persons as ministers who are recommended by the Prime Minister.
- ✓ The Prime Minister allocates and reshuffles various portfolios among the ministers.
- ✓ The Prime Minister can ask a minister to resign or advise the President to dismiss him in case of difference of opinion.
- ✓ It is the PM who presides over the meeting of the council of ministers and influences its decisions.
- ✓ The Prime Minister guides, directs, controls, and coordinates the activities of all the ministers.
- ✓ He can bring about the collapse of the council of ministers by resigning from office.

With respect to the President

- ✓ Following are the powers of the Prime Minister in relation to the President:
- ✓ Prime Minister is the principal channel of communication between the President and the council of ministers. It is the duty of the prime minister :
- ✓ To communicate to the President all decisions of the council of ministers relating to the administration of the affairs of the Union and proposals for legislation;
- ✓ To furnish such information relating to the administration of the affairs of the Union and proposals for legislation as the President may call for; and
- ✓ If the President so requires, to submit for the consideration of the council of ministers any matter on which a decision has been taken by a minister but which has not been considered by the council.
- ✓ He advises the president with regard to the appointment of important officials like Attorney General of India, Comptroller and Auditor General of India, the chairman and members of the UPSC, election commissioners, chairman and members of the finance commission and so on.

With respect to Parliament

The Prime Minister is the leader of the Lower House. In this capacity, he enjoys the following powers:

- ✓ He advises the President with regard to summoning and proroguing of the sessions of the Parliament.
- ✓ He can recommend dissolution of the Lok Sabha to President at any time.
- ✓ He announces government policies on the floor of the House.
- ✓ Other Powers & Functions of Prime Minister

In addition to the above-mentioned three major roles, the Prime Minister has various other roles. They are:

- ✓ PM is the chairman of the NITI Aayog, Governing council of NITI Aayog, National Integration Council, Inter-State Council and National Water Resources Council.
- ✓ He plays a significant role in shaping the foreign policy of the country.
- ✓ He is the chief spokesman of the Union government.
- ✓ He is the crisis manager-in-chief at the political level during emergencies.
- ✓ As a leader of the nation, he meets various sections of people in different states and receives memoranda from them regarding their problems, and so on.
- ✓ He is the leader of the party in power.
- ✓ He is political head of the services.

Emoluments of the Prime Minister

- ✓ The salary and allowances of the Prime Minister are determined by the Parliament. He receives salary and allowances that are payable to a Member of Parliament.
- ✓ He receives sumptuary allowance, free accommodation travel allowance, medical facilities in addition to his salary.

- ✓ Hence it can be concluded that, the Prime Minister is not only a leader of the Parliament but also the leader of the nation.
- ✓ The Prime Minister has to secure the willing cooperation and coordination of all important members of the Parliament as well as State Legislature.
- ✓ But in a minority government, the Prime Minister has to depend on outside support that might act as hindrance in his effective functioning.
- ✓ This happened in last decade of UPA administration government, where political compulsions stalled the reforms and effectively slowed down the growth of the economy.
- ✓ Cabinet committees are established to reduce the workload of the Cabinet Minister. These committees facilitate deep examination of the policy issue and effective coordination. Such committees are based on the principal of division of labour.
- ✓ The role of Cabinet Committees as an instrument to fast track governance reforms and thereby accelerating the pace of economic development is not new.
- ✓ Ad hoc committees of ministers, including Groups of Ministers, may be appointed by the Cabinet or by the Prime Minister for specific matters.
- ✓ Under the Government of India's transaction of business rules, 1961, the PM is empowered to set up and reconstitute cabinet committees.

The Union government released the **composition of eight Cabinet Committees**, including **two new ones** — one on Investment, the other on Employment and Skill Development.

1. Appointments Committee of the Cabinet (ACC)
2. Cabinet Committee on Accommodation (CCA)
3. Cabinet Committee on Economic Affairs (CCEA)
4. Cabinet Committee on Parliamentary Affairs (CCPA)
5. Cabinet Committee on Political Affairs (CCPA)
6. Cabinet Committee on Security (CCS)



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Two new committees are;

1. Cabinet committee on Investment & Growth
2. Cabinet Committee on Employment and skill development.

PARLIAMENT

- ✓ Part-V (Article 79 – 122) of the Constitution deals with the organization, composition, duration, officers, procedures, privileges and powers of the Parliament.
- ✓ The Union Legislature of India is not only the lawmaking body, but the center of all democratic political process.
- ✓ The Parliament is the central legislature and the legislature of the state is known as ‘State Legislature.’
- ✓ The Parliament of India is bicameral (i.e. consists of two houses) namely Rajya Sabha (the Council of States) and Lok Sabha (the House of the People).
- ✓ Indian states also have the option to have either bicameral or unicameral; however, at present, there are six states, which have bicameral legislature namely –
 - ✓ Uttar Pradesh,
 - ✓ Bihar,
 - ✓ Maharashtra,
 - ✓ Karnataka,
 - ✓ Andhra Pradesh, and
 - ✓ Telangana.
- ✓ Article 79 provides for a Parliament consisting of the President and the two houses:
- ✓ Lower House is called the House of the People (Lok Sabha). Lok Sabha (LS) represents the people of India as a whole.
- ✓ Upper House is called the Council of States (Rajya Sabha). The Rajya Sabha (RS) represents the states and union territories of the Indian Union.

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- ✓ The President is a part of the Legislature but he is not a member of either House of Parliament.
- ✓ Since GoI Act, 1919, the central legislature has been a bi-cameral body consisting of lower House (Lok Sabha) and an upper House (Rajya Sabha).
- ✓ Qualifications and disqualifications for being a Member of Parliament

To be qualified to become a Member of Parliament a person must be:

- ✓ A citizen of India;
- ✓ Not less than 30 years of age in the case of the Rajya Sabha and not less than 25 years in the case of the Lok Sabha
- ✓ He must be registered as an elector for a parliamentary constituency. This is same in the case of both, the Rajya Sabha and the Lok Sabha.
- ✓ The requirement that a candidate contesting an election to the Rajya Sabha from a particular state should be an elector in that particular state was dispensed with in 2003.
- ✓ In 2006, the Supreme Court upheld the constitutional validity of this change.

Session of Parliament, Summoning Prorogation and Dissolution

- ✓ The President shall from time to time summon each House of Parliament to meet at such time and place as he thinks fit, but six months shall not intervene between its last sitting in one session and the date appointed for its sitting in the next session.
- ✓ The President may from time to time :
 - ✓ Prorogue the Houses or either House
 - ✓ Dissolve the House of the People.

Sessions of the Parliament

A session of Indian Parliament is the time period during which a House meets almost every day continuously to transact business.

There are usually three sessions in a year.



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1. the Budget Session (February to May)
 2. the Monsoon Session (July to September) and
 3. the Winter Session (November to December).
- ✓ A session contains many meetings. Each meeting has two sittings – morning sitting from 11 am to 1 pm and post-lunch sitting from 2 pm to 6 pm.
 - ✓ A sitting of Parliament can be terminated by adjournment, adjournment sine die, prorogation or dissolution.
 - ✓ The period between the prorogation of a House and its reassembly in a new session is called 'recess'.

Summoning:

- ✓ Summoning is the process of calling all members of the Parliament to meet.
- ✓ It is the duty of Indian President to summon each House of the Parliament from time to time.
- ✓ The maximum gap between two sessions of Parliament cannot be more than six months. In other words, the Parliament should meet at least twice a year.

Adjournment:

- ✓ An adjournment suspends the work in a sitting for a specified time, which may be hours, days or weeks.
- ✓ In this case, the time of reassembly is specified.
- ✓ An adjournment only terminates a sitting and not a session of the House.
- ✓ The power of adjournment lies with the presiding officer of the House.

Adjournment Sine Die

- ✓ Adjournment sine die means terminating a sitting of Parliament for an indefinite period.
- ✓ In other words, when the House is adjourned without naming a day for reassembly, it is called adjournment sine die.
- ✓ The power of adjournment sine die lies with the presiding officer of the House.

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Prorogation:

- ✓ Prorogation means the termination of a session of the House by an order made by the President under article 85(2)(a) of the Constitution.
- ✓ Prorogation terminates both the sitting and session of the House.
- ✓ Usually, within a few days after the House is adjourned sine die by the presiding officer, the President issues a notification for the prorogation of the session.
- ✓ However, the President can also prorogue the House while in session.

Dissolution:

- ✓ Dissolution ends the very life of the existing House, and a new House is constituted after general elections are held.
- ✓ Rajya Sabha, being a permanent House, is not subject to dissolution. Only the Lok Sabha is subject to dissolution.
- ✓ The dissolution of the Lok Sabha may take place in either of two ways:

Automatic dissolution:

- ✓ On the expiry of its tenure – five years or the terms as extended during a national emergency.

Order of President:

- ✓ If President is authorized by CoM, he can dissolve Lok Sabha, even before the end of the term. He may also dissolve Lok Sabha if CoM loses confidence and no party is able to form the government.
- ✓ Once the Lok Sabha is dissolved before the completion of its normal tenure, the dissolution is irrevocable.
- ✓ When the Lok Sabha is dissolved, all business including bills, motions, resolutions, notices, petitions and so on pending before it or its committees lapse.
- ✓ Other Terms Related To the Parliamentary Functioning

Quorum:

- ✓ It is the minimum number of members whose presence is essential to transact the business of the House.
- ✓ Article 100 provides the quorum of either House shall be one tenth of the total number of members of the House.

Question Hour

- ✓ The day's business normally begins with the Question Hour during which question asked by the members are answered by the Minister. The different types of questions are:

Starred Question:

- ✓ It is one for which an oral answer is required to be given by the Minister on the floor of the House. Supplementary question may be asked based on the Minister's reply.

Unstarred Question:

- ✓ It is one for which the Minister lays on the table a written answer. A 15 day notice has to be given to ask such question and no supplementary questions can be asked with regard to such questions.
- ✓ Short Notice Question: This type of question which can be asked by members on matters of public importance of an urgent nature. A short notice question is one that is asked by giving a notice of less than ten days.
- ✓ It is answered orally. It is for the speaker to decide whether the matter is of urgent nature or not. The member has also may be requested to state reasons for asking the question while serving notice.

Zero Hour

- ✓ This period follows the 'Question Hour' and it normally begins at noon. Usually, the members use this period to raise various issues for discussion.

Cut Motions

- ✓ A motion that seeks reduction in the amount of a demand presented by the govt. is known as a Cut Motion.
- ✓ Such motions are admitted at the speakers' discretion. It is a device through which members can draw the attention of the government to a specific grievance or problem.

There are three types of cut motions –

- ✓ **Policy Cut Motion** – which is to express disapproval of the policy underlying a particular demand, says that 'the amount of the demand be reduced to Re. 1".
- ✓ **Economy Cut Motion**– Economy Cut refers to a cut motion which seeks to reduce the demand by a specific sum with a view to affecting the economy in the expenditure.
- ✓ **Token cut Motion**– is a device to ventilate specific grievances within the sphere of the government's responsibility. The grievance has to be specified. Usually, the motion is in the form, "The amount of the demand is reduced by Rs. 100".

Calling Attention Motion

- ✓ With prior permission of the speaker; a member may call the attention of a Minister to any matter of urgent public importance.
- ✓ The Minister may make a brief statement regarding the matter or ask for time to make a statement. However, unlike the zero
- ✓ hour, it is mentioned in the Rules of Procedure.

Privilege Motion

- ✓ It is motion moved by a member if he feels that a minister has committed a breach of privilege of the House or of any one or more of its members by with-holding facts of a case or by giving a distorted version of acts. Its purpose is to censure the concerned minister.

Vote on account



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- ✓ As there is usually gap between the presentation of the budget and its approval, the vote on account enables the govt. to draw some amount from the consolidated fund of India to meet the expenses in the intervening period.
- ✓ Guillotine
- ✓ On the last of the allotted days at the appointed time, the speaker puts every question necessary to dispose all the outstanding matters in connection with the demands for grants. This is known as guillotine. The guillotine concludes the discussion and demands for grants.

Censure Motion

- ✓ Censure Motion differs from a no-confidence motion in that the latter does not specify any ground on which it is based, while the former has to state the reason for which it is being moved.
- ✓ A censure motion can be moved against the Council of Minister or an individual minister for failing to act or for some policy. Reason for the censure must be precisely enumerated.
- ✓ The speaker decides whether or not the motion is in order and no leave of the House is required for moving it.
- ✓ The Govt. may at its discretion fix a date for the discussion of the motion. If the motion is passed in the Lok Sabha the Council of Minister is expected to resign.

Functions of the Parliament:

- ✓ The Parliament has legislative (law making) and financial functions (money bill and budgetary function); besides, it also controls the Executive and ensures its accountability.
- ✓ The Parliament is the highest forum of debate in the country and hence, there is no limitation on its power of discussion.
- ✓ The Parliament has the power of discussing and enacting changes to the Constitution (i.e. amendment power).
- ✓ The Parliament also performs some electoral functions, as it elects the President and the Vice President of India.

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- ✓ The Parliament has also judicial functions, as it considers and decides the proposals for the removal of President, Vice-President, and Judges of the Supreme Court and High Courts.
- ✓ Following are the some distinct powers of Lok Sabha and Rajya Sabha –
- ✓ Lok Sabha makes ‘Laws’ on matters included in Union List and Concurrent List and can introduce and enact money and non-money bills.
- ✓ Rajya Sabha considers and approves non-money bills and suggests amendments to money bills.
- ✓ Lok Sabha approves proposals for taxation, budgets, and annual financial statements.
- ✓ Rajya Sabha approves constitutional amendments.
- ✓ Lok Sabha establishes committees and commissions and considers their reports.
- ✓ Rajya Sabha can give the Union parliament power to make laws on matters included in the State list.

Special Powers of Rajya Sabha

- ✓ Rajya Sabha has some special powers. If the Union Parliament wishes to remove a matter from the State list (over which only the State Legislature can make law) to either the Union List or Concurrent List in the interest of the nation, the approval of the Rajya Sabha is essential.

Special Powers of Lok Sabha

- ✓ Regarding Money Bills, the Lok Sabha has the exclusive power and hence, the Rajya Sabha cannot initiate, reject, or amend money bills.
- ✓ Amendment/s made by the Rajya Sabha to the Money Bill may or may not be accepted by the Lok Sabha.

Bills

- ✓ A bill proposed by a minister is described as Government Bill; however, if a bill proposed by a non-minister member, it is known as private member’s Bill.

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- ✓ If there is disagreement between the two Houses on a proposed Bill, then it is resolved through the Joint Session of Parliament.
- ✓ Regarding the Money Bill, if the Rajya Sabha does not take any action within 14 days, the bill is deemed to have been passed.

RAJYA SABHA

- ✓ The maximum strength of the Rajya Sabha is fixed at 250, out of which, 238 are to be the representatives of the states and union territories and 12 are nominated by the president
- ✓ Presently the Rajya Sabha has 245 members. Of these, 229 members represent the states, 4 members represent the union territories and 12 members are nominated by the president
- ✓ Members of Rajya Sabha are elected by the elected members of the 'State Legislative Assemblies' in accordance with the system of proportional representation by means of the single transferable vote.
- ✓ This process of election is called "indirect election" as they are not elected by the people directly.
- ✓ The Constitution lays down the following qualifications for a person to be chosen a member of the Rajya sabha

1. He should be a citizen of India.
2. He should not be less than 30 years of age.
3. He should not hold any office of profit under any Government

- ✓ The Fourth Schedule of the Constitution of India deals with the allocation of seats in the Rajya Sabha to the states and union territories
- ✓ The Rajya Sabha (first constituted in 1952) is a continuing chamber, It is a permanent body and not subject to dissolution. However, one-third of its members retire every second year
- ✓ Representation of the People Act (1951) provided that the term of office of a member of the Rajya Sabha is six years
- ✓ Rajya sabha cannot reject or amend a money bill
- ✓ The vice-president of India is the ex-officio Chairman of the Rajya Sabha

- ✓ The Deputy Chairperson of the Rajya Sabha is elected by the members of the Rajya Sabha.
- ✓ Rajya sabha authorise the Parliament to create new All-India Services common to both the Centre and states.

LOK SABHA:

- ✓ The maximum strength of the Lok Sabha is fixed at 552. Out of this, 530 members are to be the representatives of the states, 20 members are to be the representatives of the union territories and 2 members are to be nominated by the president from the Anglo-Indian community.
- ✓ Presently the Lok Sabha has 545 members. Of these, 530 members represent the states, 13 members represent the union territories and 2 Anglo-Indian members are nominated by the President
- ✓ Lok Shaba normal term is five years from the date of its first meeting after the general elections, after which it automatically dissolves
- ✓ The Constitution lays down the following qualifications for a person to be chosen a member of the Lok sabha.

1.He should be a citizen of India.

2.He should not be less than 25 years of age.

3.He should not hold any office of profit under the Union or State Government.

- ✓ The Speaker and deputy speaker of the Lok Sabha is the presiding officer of the Lok Sabha
- ✓ Lok sabha speaker does not vote in the first instance. But he can exercise a casting vote in the case of a tie. In other words, only when the House is divided equally on any question, the Speaker is entitled to vote. Such vote is called casting vote, and its purpose is to resolve a deadlock
- ✓ Lok sabha speaker presides over a joint setting of the two Houses of Parliament. Such a sitting is summoned by the President to settle a deadlock between the two Houses on a bill.
- ✓ Lok sabha speaker appoints the chairman of all the parliamentary committees of the Lok Sabha and supervises their functioning

- ✓ Lok Sabha is dissolved; the Speaker does not vacate his office and continues till the newly-elected Lok Sabha meets.

In the following cases, a member of Parliament vacates his seat:

- ✓ House can declare the seat of a member vacant if he is absent from all its meetings for a period of sixty days without its permission
- ✓ Person cannot be a member of both the Parliament and the state legislature at the same time. If a person is so elected, his seat in Parliament becomes vacant if he does not resign his seat in the state legislature within 14 days.
- ✓ If a person is elected to both the Houses of Parliament, he must intimate within 10 days in which House he desires to serve. In default of such intimation, his seat in the Rajya Sabha becomes vacant.

COMMITTEES OF THE PARLIAMENT

- ✓ Broadly, parliamentary Committees are of two kinds - Standing Committee and Ad Hoc Committees.
- ✓ The former are permanent (constituted every year or periodically) and work on a continuous basis, while the latter are temporary and cease to exist on completion of the task assigned to them.

STANDING COMMITTEES

On the basis of the nature of functions performed by them, standing Committees can be classified into the following six categories:

1. Financial Committees

- a) Public Accounts Committee
- b) Estimates Committee
- c) Committee on Public Undertakings

2. Departmental Standing Committees

3. Committees to Inquire

- a) Committee on Petitions
- b) Committee of Privileges
- c) Ethics Committee

4. Committees to Scrutinise and Control

- a) Committee on Government Assurances
- b) Committee on Subordinate Legislation
- c) Committee on Papers Laid on the Table
- d) Committee on Welfare of SC's and ST's
- e) Committee on Empowerment of Women
- f) Joint Committee on Offices of Profit

5. Committees Relating to the Day-to-Day Business of the House

- a) Business Advisory Committee
- b) Committee on Private Members' Bills and Resolutions
- c) Rules Committee
- d) Committee on Absence of Members from Sitzings of the House

6. House-Keeping Committees or Service Committees

- a) General Purposes Committee
- b) House Committee
- c) Library Committee
- d) Joint Committee on Salaries and Allowances of Members.

Ad Hoc Committee

- ✓ Ad Hoc Committees can be divided into two categories, that is, Inquiry Committees and Advisory Committees.

STATE GOVERNMENT

GOVERNOR :

- ✓ Articles 153 to 167 in Part VI of the Constitution deal with the state executive
- ✓ The governor is the chief executive head of the state. The governor also acts as an agent of the central government
- ✓ Governor is appointed by the president of India
- ✓ The Legislature of a State or a High Court has no role in the removal of a Governor.
- ✓ The Constitution lays down only two qualifications for the appointment of a person as a governor.

1. He should be a citizen of India

2. He should have completed the age of 35 years. Additionally, he should not belong to the state where he is appointed.

- ✓ A governor holds office for a term of five years from the date on which he enters upon his office. However, this term of five years is subject to the pleasure of the President
- ✓ According to Article 158 (3A), where the same person is appointed as Governor of two or more States, the emoluments and allowances payable to the Governor shall be allocated among the States in such proportion as the President may by order determine.

POWERS AND FUNCTIONS OF THE GOVERNOR

- ✓ The Governor is the head of the state executive and he has enormous powers.
- ✓ In the exercise of functions and powers, the Governor, except in certain cases, is to be guided by the aid and advice of the Council of Ministers headed by the Chief Minister (under Article 163).

EXECUTIVE POWERS:

- ✓ He appoints the leader of the majority party in the State Legislative Assembly as the Chief Minister of the State.
- ✓ He appoints other members of the Council of Ministers on the recommendation of the Chief Minister.
- ✓ He acts as the chancellor of universities in the state. He also appoints the vice-chancellors of universities in the state.

- ✓ He appoints the advocate general of a state, state election commissioner and chairman and members of the state public service commission
- ✓ He directly rules a State when there is the imposition of the President's rule in the State.

LEGISLATIVE POWERS

- ✓ Under Article 175 Right of the Governor to address and send messages to the house or houses of state legislature.
- ✓ Under Article 213 he can promulgate ordinances when the state legislature is not in session. These ordinances must be approved by the state legislature within six weeks from its reassembly.
- ✓ He can nominate one member to the State Legislative Assembly from the Anglo-Indian Community.
- ✓ Every bill passed by the state legislature will become law only after his signature. But, when a bill is sent to the Governor after it is passed by the legislature, he has the options to give his assent to the bill or withhold his assent to the bill or return the bill for the reconsideration of the legislature.

FINANCIAL POWERS

- ✓ Money bills can be introduced in the state legislature only with his prior Recommendation.
- ✓ He can make advances out of the state Contingency Fund to meet any unforeseen expenditure.
- ✓ He constitutes a finance commission after every five years to review the financial position of the panchayats and the municipalities.

JUDICIAL POWERS

- ✓ He appoints the advocate -General of the State.
- ✓ He makes appointment, postings and promotions of the District Judges in consultation with the State High Court
- ✓ He can pardon, commute or reprieve punishment on receipt of appeals for mercy except death sentence.

STATE COUNCIL OF MINISTERS

- ✓ Article 164 clearly states that council of ministers shall be collectively responsible to the state Legislative Assembly.
- ✓ The chief minister is appointed by the governor. The other ministers are appointed by the governor on the advice of the chief minister.
- ✓ All the members of the Council of Ministers must be the members of the State Legislature. Those who are not the members at the time of their appointment, must secure their seats in the Legislature within a period of 6 months.

STATE LEGISLATURE

- ✓ The state legislature consists of the governor and the legislative assembly.
- ✓ If the states having bicameral system the state legislature consists of the governor, the legislative council and the legislative assembly.
- ✓ Some of the states have a unicameral system, while others have a bicameral system
- ✓ Presently only six states have two Houses (bicameral). These are Andhra Pradesh, Telangana, Uttar Pradesh, Bihar, Maharashtra and Karnataka.
- ✓ The twenty-two states have unicameral system.
- ✓ The Constitution provides for the abolition or creation of legislative councils in states. Accordingly, the Parliament can abolish a legislative council or create it.
- ✓ The legislative assembly consists its maximum strength is fixed at 500 and minimum strength at 60. It means that its strength varies from 60 to 500 depending on the population size of the state.
- ✓ Arunachal Pradesh, Sikkim and Goa, the minimum number is fixed at 30 and Mizoram is 40 and Nagaland is 46.
- ✓ Duration of the legislative assembly is 5 years
- ✓ The legislative council is a continuing chamber, it is a permanent body and is not subject to dissolution

- ✓ A person must be not less than 30 years of age in the case of the legislative council and not less than 25 years of age in the case of the legislative assembly.
- ✓ Article 169 deals with the creation or abolition of Legislative Council in a State.
- ✓ Article 169 holds that if the state Legislative Assembly passes a resolution by a majority of not less than 2/3rd of the members present and voting and by the majority of total strength of the House, requesting the Parliament to create or abolish the state Legislative council then the Parliament may by law provide for the abolition and creation of the Legislative Council.
- ✓ Presiding officer of legislative assembly is Speaker and a Deputy Speaker
- ✓ A Money Bill can be introduced only in the assembly and not in the council.
- ✓ The council cannot amend or reject a money bill. It should return the bill to the assembly within 14 days.

CHIEF MINISTER:

- ✓ The position of the Chief Minister at the state level is analogous to the position of Prime Minister at the Centre.
- ✓ CM is the real executive authority (de facto executive) in parliamentary system of government. (Governor – Nominal; de jure executive).
- ✓ CM is the head of the government. (Governor is the head of the State)

Note

- ✓ 163 – Council of Ministers to aid and advise Governor.
- ✓ 164 – Says only that the Chief Minister shall be appointed by the Governor.
- ✓ The Constitution does not contain any specific procedure for the selection and appointment of the CM. It's by and large, governed by parliamentary.

Appointment of Chief Minister:

- ✓ 164 – Says only that the Chief Minister shall be appointed by the GOVERNOR.
- ✓ However, the Governor is not free to appoint anyone as the Chief Minister.
- ✓ Conventions of the parliamentary system – The Governor has to appoint the leader of the majority party in the state legislative assembly as the Chief Minister.
- ✓ Person who is not a member of the state legislature can be appointed as Chief Minister for six months, within which time, he should be elected to the state legislature.
- ✓ According to the Constitution, the Chief Minister may be a member of any of the two Houses.

Oath, Term and Salary

- ✓ Governor administers to him the oaths of office and secrecy.
- ✓ The term of the CM is not fixed and he holds office during the pleasure of the Governor.
- ✓ So long as the CM enjoys the majority support in the legislative assembly, CM cannot be dismissed by the Governor.
- ✓ In case of loss of confidence (majority) of the legislative assembly, CM must resign or the Governor can dismiss him.
- ✓ The salary and allowances of the CM are determined by the state legislature from time to time. CM gets the salary and allowances that are payable to a member of state legislature.

Power & Functions of Chief Minister

Role of CM w.r.t. CoM

- ✓ CM recommends persons who can be appointed as ministers by the governor. The governor can appoint only those persons as ministers who are recommended by the CM.
- ✓ He allocates and reshuffles various portfolios among the ministers.
- ✓ He can ask a minister to resign or advise the governor to dismiss him in case of difference of opinion.



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- ✓ He presides over the meeting of CoM and influences its decisions.
- ✓ He guides, directs, controls, and coordinates the activities of all the ministers.
- ✓ He can bring about the collapse of the CoM by resigning from office.
- ✓ The resignation or death of an incumbent CM automatically dissolves the CoM and thereby generates a vacuum.
- ✓ The resignation or death of any other minister, on the other hand, merely creates a vacancy which the CM may or may not like to fill.
- ✓ He is the chief spokesman of the state government.
- ✓ He is leader of the party in power in state.
- ✓ He is political head of the services.

Role of CM w.r.t. Governor

- ✓ CM is the principal channel of communication (Art. 167) between the governor and CoM.
- ✓ It is the duty of the CM to communicate to the governor all decisions (Art. 167) of the CoM, to furnish such information relating to the administration as the governor may call for and if the governor so requires, to submit for the consideration of the CoM any matter on which a decision has been taken by a minister but which has not been considered by the council.
- ✓ CM advises the governor with regard to the appointment of important officials like Advocate General, chairman and members of the state public service commission, state election commissioner, and so on.

Role of CM w.r.t. State Legislature

- ✓ The CM is the leader of the state legislative assembly.
- ✓ He advises the governor with regard to summoning and proroguing of the sessions of the state legislature.
- ✓ He can recommend dissolution of the legislative assembly to governor at any time.
- ✓ He announces government policies on the floor of the House.

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Other Power & Functions

- ✓ He is a member of the Inter-State Council and the Governing Council of NITI Aayog (both headed by the prime minister)
- ✓ CM is chairman of the State Planning Board.
- ✓ CM is vice-chairman of the concerned zonal council by rotation, holding office for a period of one year at a time.
- ✓ He is the crisis manager-in-chief at the political level during emergencies.
- ✓ CM is Chairperson of State Disaster Management Authority (SDMA).

JUDICIAL

Supreme Court of India:

- ✓ Adopted from the Government of India Act of 1935
- ✓ Supreme Court is the highest court of appeal.
- ✓ Constitution deals with jurisdiction, independence, powers, procedures and organization. Parliament can also regulate them. It can increase the number of judges. Parliament can't curtail the jurisdiction but expand it only.
- ✓ Supreme Court has the power to punish for its contempt.
- ✓ Appointment of judges is done by the president.
- ✓ For the chief justice the president consults as many judges of the Supreme Court and high court as he may deem necessary.
- ✓ For the other judges he has to consult the chief justice of India and as many other judges of the S.C and H..C as he may deem necessary.
- ✓ Conduct of the judges in performance of their duties can't be discussed in parliament except when a motion for their impeachment is being considered.
- ✓ Composition of Supreme Court of India .

34 Judges i.e. 01 CJI & 33 Other Judges

Qualification

- ✓ He should be a citizen of India
- ✓ He should fulfil at least one criterion from below:
- ✓ He should be a judge of H.C in succession for 5 years
- ✓ He should be an advocate of H.C in succession for 10 years
- ✓ He should be a distinguished jurist in the opinion of the president.

Tenure

- ✓ Occupies office till he attains the age of 65 yrs.
- ✓ Can resign anytime in writing to the president.
- ✓ Can be removed by president on recommendation of parliament.

Appointment

- ✓ Judges appointed by the president
- ✓ CJI is appointed by the president after consultation with such judges of the Supreme Court and high courts as he deems necessary.
- ✓ Other judges appointed by president after consult with CJI & such judges of the Supreme Court and high courts
- ✓ Consultation with the chief justice is obligatory in the case of
- ✓ appointment of a judge other than Chief justice.

Removal

- ✓ A motion support removal must be supported by 100 LS / 50 RS members. The presiding officer may or may not admit it. If admitted an inquiry committee of Chief justice of India or a Supreme Court judge; Chief justice of high court and distinguished jurist checks if judge is guilty; if the committee finds the judge guilty then parliament can pass a motion by special majority in both houses.
- ✓ An address supported by this motion must be presented to the president on the same day.

- ✓ Then by a presidential order the judge can be removed

Acting CJI or Adhoc S.C. Judges

- ✓ President can appoint a S.C judge as acting chief justice if the Chief justice is absent or can't perform his duties or the office is vacant.
- ✓ The chief justice with the previous consent of the president may appoint adhoc judges to the Supreme Court by nominating high court judges who are duly qualified.
- ✓ The consultation of the chief justice of the high court is also needed.
- ✓ Also retired judges of H.C or S.C can be appointed if their consent is there. But he won't be considered as S.C judge.
- ✓ Retired judges of S.C. are banned from pleading or acting in any court before any authority in India.
- ✓ The C.J.I. can with the approval of the president designate other seats of the S.C. too.
- ✓ Seat of Supreme Court of India
- ✓ The Constitution declares Delhi as the seat of the Supreme Court. It also authorises the CJI to appoint other place or places as seat of the Supreme Court.
- ✓ He can take decision in this regard only with the approval of the President. This provision is only optional and not compulsory.
- ✓ This means that no court can give any direction either to the President or to the Chief Justice to appoint any other place as the seat of the Supreme Court.

Procedure of the Court :

- ✓ The Supreme Court can, with the approval of the president, make rules for regulating generally the practice and procedure of the Court.
- ✓ The Constitutional cases or references made by the President under Article 143 are decided by a Bench consisting of at least five judges.
- ✓ All other cases are decided by single judges and division benches.
- ✓ The judgements are delivered by the open

- ✓ All judgements are by majority vote but if differing, then judges can give dissenting judgements or opinions.
- ✓ It is a federal court, the highest court of appeal, the guarantor of the fundamental rights of the citizens and guardian of the Constitution.
- ✓ Provisions to safeguard and ensure the independent and impartial functioning of the Supreme Court
- ✓ Mode of Appointment
- ✓ Security of Tenure
- ✓ Fixed Service Conditions
- ✓ Expenses Charged on Consolidated Fund
- ✓ Conduct of Judges cannot be Discussed
- ✓ Ban on Practice after Retirement
- ✓ Power to Punish for its Contempt
- ✓ Freedom to Appoint its Staff
- ✓ Its Jurisdiction cannot be Curtailed
- ✓ Separation from Executive
- ✓ Jurisdiction of the Supreme Court of India
- ✓ Original Jurisdiction
- ✓ As a Federal court, the Supreme Court decides disputes between different units of the Indian Federation. More elaborately, any dispute between:
 - ✓ the Centre and one or more states; or
 - ✓ the Centre and any state or states on one side and one or more states on the other; or
 - ✓ between two or more states.
- ✓ In the above federal disputes, the Supreme Court has exclusive original jurisdiction.
- ✓ Further, this jurisdiction of the Supreme Court does not extend to the following:
 - ✓ A dispute arising out of any pre-Constitution treaty, agreement, covenant, engagement, sanad or other similar instrument.
 - ✓ A dispute arising out of any treaty, agreement, etc., which specifically provides that the said jurisdiction does not extend to such a dispute.

Inter-state water disputes.

- ✓ Matters referred to the Finance Commission.
- ✓ Adjustment of certain expenses and pensions between the Centre and the states.
- ✓ Ordinary dispute of Commercial nature between the Centre and the states.
- ✓ Recovery of damages by a state against the Centre.

Writ Jurisdiction

- ✓ The Supreme Court is empowered to issue writs, including habeas corpus, mandamus, prohibition, quo-warranto and certiorari for the enforcement of the fundamental rights of an aggrieved citizen.
- ✓ In this regard, the Supreme Court has original jurisdiction in the sense that an aggrieved citizen can go directly to the Supreme Court, not necessarily by way of appeal.
- ✓ However, the writ jurisdiction of the Supreme Court is not exclusive.
- ✓ The High Courts are also empowered to issue writs for the enforcement of the Fundamental Rights.

Appellate Jurisdiction

- ✓ The Supreme Court is primarily a court of appeal and hears appeals against the judgements of the lower courts. It enjoys a wide appellate jurisdiction which can be classified under four heads:
 - ✓ Appeals in constitutional matters
 - ✓ Appeals in civil matters
 - ✓ Appeals in criminal matters
 - ✓ Appeals by special leave
 - ✓ Advisory Jurisdiction
- ✓ The Constitution under Article 143 authorises the President to seek the opinion of the Supreme Court in the two categories of matters:

1. On any question of law or fact of public importance which has arisen or which is likely to arise.
2. On any dispute arising out of any pre-constitution treaty, agreement, covenant, engagement, sanador other similar instruments.

A Court of Record

- ✓ As a Court of Record, the Supreme Court has two powers:
- ✓ The judgements, proceedings and acts of the Supreme Court are recorded for perpetual memory and testimony. These records are admitted to be of evidentiary value and cannot be questioned when produced before any court.
- ✓ They are recognised as legal precedents and legal references.
- ✓ It has power to punish for contempt of court, either with simple imprisonment for a term up to six months or with fine up to 2,000 or with both.

Power of Judicial Review

- ✓ Judicial review is the power of the Supreme Court to examine the constitutionality of legislative enactments and executive orders of both the Central and state governments.
- ✓ On examination, if they are found to be violative of the Constitution (ultra-vires), they can be declared as illegal, unconstitutional and invalid (null and void) by the Supreme Court. Consequently, they cannot be enforced by the Government.

Judicial Review in India

- ✓ Constitution itself confers the power of judicial review on the judiciary (both the Supreme Court as well as High Courts).
- ✓ 'Judicial Review' has nowhere been used in the Constitution.
- ✓ basic feature of the Constitution or an element of the basic structure of the Constitution
- ✓ cannot be curtailed or excluded even by a constitutional amendment Judicial Review



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Meaning of Judicial Review:

- ✓ power of the judiciary to examine the constitutionality of legislative enactments and executive orders of both the Central and State governments constitutional amendments
- ✓ legislation of the Parliament and State Legislatures and subordinate legislations
- ✓ administrative action of the Union and State and authorities under the state.
- ✓ E.g- Golaknath case (1967), Kesavananda Bharati case (1973), 99th Constitutional Amendment, 2014 and the National Judicial Appointments Commission (NJAC) Act, 2014

Importance :

uphold the principle of the supremacy of the Constitution maintain federal equilibrium
protect the Fundamental Rights.

HIGH COURT

- ✓ The Constitution of India provides for a high court for each state, but the Seventh Amendment Act of 1956 authorised the Parliament to establish a common high court for two or more states or for two or more states and a union territory.
- ✓ Articles 214 to 231 in Part VI.
- ✓ Every HC (whether exclusive or common) consist of Chief Justice and such other judges as PRESIDENT OF INDIA may from time to time deem necessary to appoint.
- ✓ Constitution does not specify strength of HC and leaves it to the discretion of the President.

Appointment High Court Judges

- ✓ The judges of a high court are appointed by the President..
- ✓ Chief justice of HC – Appointed by the President after consultation with the chief justice of India and the GOVERNOR of the state concerned.
- ✓ Other judges of HC – Chief Justice of the concerned HC is also consulted. In case of a common high court for two or more states, the governors of all the states concerned are consulted by the president.

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- ✓ Third Judges case (1998) – SC opined that in case of the appointment of HC judges, the CJI should consult a collegium of two senior-most judges of the SC. The sole opinion of the CJI alone does not constitute the ‘consultation’ process.
- ✓ Fourth Judges case (2015) – The Court opined that the new system NJAC would affect the independence of the judiciary and declared both the 99th Constitutional Amendment 2014 as well as the NJAC Act as unconstitutional and void.
- ✓ The involvement of political executive in appointment procedure was against the “Principles of Basic Structure” e. “Independence of Judiciary”

Qualification of High Court Judges

- ✓ He should be a citizen of India.
- ✓ He should have held a judicial office in the territory of India for ten years or
- ✓ He should have been an advocate of a high court for ten years.
- ✓ Constitution has not prescribed a minimum age for appointment as a judge of a HC.
- ✓ Constitution makes no provision for appointment of a “distinguished jurist” as a judge of a HC in the opinion of president. (unlike in the case of the SC)
- ✓ Oath and Affirmation
- ✓ A person appointed as a judge of a high court, before entering upon his office, has to make and subscribe an oath or affirmation before the governor of the state or some person appointed by him for this purpose.

Salaries and allowances

- ✓ The salaries, allowances, privileges, leave and pension of the judges of a high court are determined from time to time by the Parliament.
- ✓ They cannot be varied to their disadvantage after their appointment except during a financial emergency (Art.360)
- ✓ NOTE – Salaries of judges of HC are charged upon “consolidated fund of state”. However, pensions of judges of HC are charged upon “consolidated fund of India”.

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Tenure of High Court Judges

- ✓ The Constitution has not fixed the tenure of a judge of a high court.
- ✓ He holds office until he attains the age of 62 years (65 years in case of SC). Any questions regarding his age is to be decided by the president after consultation with the CJI of SC and the decision of the president is final. (determine by parliament in case of SC)
- ✓ Resignation – By writing to the president.
- ✓ He can be removed from his office by the President on the recommendation of the Parliament.

Removal of High Court Judges

- ✓ same manner and on the same grounds as a judge of the Supreme Court order of the President on recommendations of parliament supported by a special majority of each House of Parliament
- ✓ Proved misbehaviour or incapacity.
- ✓ Judges Enquiry Act (1968)
- ✓ A removal motion signed by 100 members (Lok Sabha) or 50 members (Rajya Sabha) is to be given to the Speaker/Chairman.
- ✓ The Speaker/Chairman may admit or refuse to admit motion.
- ✓ If it is admitted, then the Speaker/ Chairman is to constitute a three-member committee to investigate into the charges.
- ✓ The committee should consist of following members–
- ✓ The chief justice or a judge of the Supreme Court,
- ✓ The Chief justice of a high court, and a distinguished jurist.
- ✓ After the motion is passed by each House of Parliament by special majority, an address is presented to the president for removal of the judge.
- ✓ Conclusively, the president passes an order removing the judge.

- ✓ It is interesting to know that no judge of a high court has been impeached so far.

President can appoint a judge of a high court as an acting chief justice of HC

- ✓ Office of chief justice of HC is vacant; or
- ✓ Chief justice of HC is temporarily absent; or
- ✓ Chief justice of HC is unable to perform the duties of his office.

Subordinate Courts, NALSA, Lok Adalat & Gram Nyayalayas

Context:

- ✓ Part VI (State) spanning from 233 to 237 of the Indian Constitution. State judiciary system consists of a HC and a hierarchy of subordinate courts below it, also known as lower courts.
- ✓ They function below and under the HC at district and lower levels.

Appointment of District Judges

- ✓ The appointment, posting and promotion of district judges in a state are made by the Governor of the state in consultation with the HC.

Qualification of District Judges

- ✓ He should not already be in the service of the Central or the state
- ✓ He should have been an advocate for seven years.
- ✓ He should be recommended by the HC for appointment.

Appointment of Other Judges

- ✓ Made by the Governor of the state after consultation with the State Public Service Commission and the HC of concerned state.

Control

- ✓ The control over district courts and other subordinate courts including the posting, promotion and leave of persons belonging to the judicial service of a state and holding any post inferior to the post of district judge is vested in the High Court.
- ✓ Application

- ✓ The Governor may direct that the above-mentioned provisions relating to persons in the state judicial service would apply to any class or classes of magistrates in the state.

Structure and Jurisdiction

- ✓ The organizational structure, jurisdiction and nomenclature of the subordinate judiciary are laid down by the states.
- ✓ Hence, they differ slightly from state to state.
- ✓ Broadly, there are three tiers of civil and criminal courts below the HC of state.
- ✓ Schematic- Hierarchical structure of Sub-ordinate court
- ✓ The district judge is the highest judicial authority in the district.
- ✓ He possesses original and appellate jurisdiction in both civil and criminal
- ✓ Criminal matters – District judge is known as the Sessions judge.
- ✓ Civil matters – District judge known as the District.
- ✓ National Legal Services Authority: NALSA

Lok Adalats:

- ✓ forum where the cases (or disputes) which are pending in a court or which are at pre-litigation stage (not yet brought before a court).
- ✓ 'People's Court'.

Family Courts:

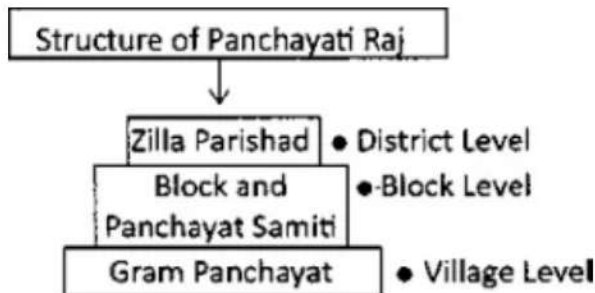
- ✓ Family Courts Act, 1984
- ✓ State Governments in consultation with the High Courts

Gram Nyayalayas:

- ✓ Gram Nyayalayas Act, 2008
- ✓ Article 39A.

- ✓ Law Commission of India in its 114th Report on Gram Nyayalaya suggested establishment of Gram Nyayalayas
- ✓ The principle of separation of powers has not been placed clearly in Indian Constitution; however, the separate functions of the three specified Organs (i.e. Executive, Parliament, and Judiciary) are specified.
- ✓ Among all the three Organs, no one is superior to the other, and one cannot control the other, in any manner, but rather all three Organs need to work in harmony.
- ✓ Article 50 of the Constitution separates the Executive from the Judiciary.
- ✓ Article 53 (1) states that the executive power of the Union shall be vested in the President and shall be exercised by him either directly or through officers subordinate to him in accordance with this Constitution.
- ✓ Further, the President, being the executive head of the country, is also empowered to exercise legislative powers in certain condition (Article 123).
- ✓ Article 73 (a) states that the Parliament has power to make laws; and (b) to the exercise of such rights, authority, and jurisdiction as are exercisable by the Government of India by virtue of any treaty or agreement.
- ✓ The function of the Judiciary is to Review the action of the legislature and the Executive.

Panchayati Raj System in India



- ✓ Initially, 64th Constitutional Amendment Bill in the Lok Sabha in July 1989 to constitutionalize panchayati raj system /institutions, couldn't passed by Rajya Sabha.
- ✓ Constitutionalized through the 73rd Constitutional Amendment Act of Rajasthan was the first state to establish Panchayati Raj. The scheme was inaugurated by the prime minister Jawaharlal Nehru on October 2, 1959, in Nagaur district.
- ✓ Evolution of Panchayati Raj System in India
- ✓ Balwant Rai Mehta committee 1957 –
- ✓ To examine the working of the Community Development Programme (1952) and the National Extension Service (1953).
- ✓ Establishment of an organically linked three-tier panchayati raj system through a device of indirect elections.
- ✓ Village panchayat – constituted with directly elected representatives.

Municipalities / 74th Constitutional Amendment Act of 1992

- ✓ 'Urban Local Government'. 74th Constitutional Amendment Act of 1992
- ✓ Subject of 'urban local government' is dealt with by the following three ministries: –
- ✓ Ministry of Housing and Urban Affairs – For States
- ✓ Ministry of Defence – For cantonment boards
- ✓ Ministry of Home Affairs – For Union Territories

Historical Perspective of Municipalities

- ✓ First municipal corporation in India – At Madras
- ✓ Bombay and Calcutta Municipal corporations – In 1726
- ✓ Lord Mayo's Resolution of 1870 – on financial decentralization visualized the development of local self-government institutions.
- ✓ Lord Ripon's Resolution of 1882 – 'Magna Carta' of local self-government. Ripon father of local-self-government in India.
- ✓ Royal Commission on decentralization in 1907. Its chairman was Hob-house.
- ✓ Government of India Act of 1919 – Under the dyarchical scheme, local self-government became a transferred subject under the charge of a responsible Indian minister.
- ✓ Cantonments Act was passed – In 1924.
- ✓ Government of India Act of 1935 – Under the provincial autonomy scheme, local self-government was declared a provincial subject.

CONSTITUTIONAL BODIES

1.ELECTION COMMISSION

- ✓ •Article 324 of the Constitution provides that the power of superintendence, direction and control of elections to parliament, state legislatures, the office of president of India and the office of vice president of India shall be vested in the election commission.
- ✓ •The Election Commission is a permanent and an independent body established by the Constitution of India. It ensures free and fair elections in the country.
- ✓ •The president of India appoints Chief Election Commissioner and other Election Commissioners.
- ✓ They hold office for a term of six years or until they attain the age of 65 years, whichever is earlier

- ✓ •The powers and functions of the Election Commission with regard to elections to the Parliament, state legislatures and offices of President and Vice-President can be classified into three categories

- 1.Administrative
- 2.Advisory
- 3.Quasi-Judicial

- ✓ •It must be noted here that the election commission is not concerned with the elections to panchayats and municipalities in the states.
- ✓ For this, the Constitution of India provides for a separate State Election Commission.
- ✓ . It conducts elections to Panchayats Bodies and Urban Local Bodies in accordance with 73rd and 74th Constitutional Amendments.

2.UNION PUBLIC SERVICE COMMISSION

- ✓ Articles 315 to 323 in Part XIV of the Constitution contain elaborate provisions regarding the composition, appointment and removal of members along with the independence, powers and functions of the UPSC.
- ✓ A chairman and other members of UPSC appointed by the president of India.
- ✓ The chairman and members of the Commission hold office for a term of six years or until they attain the age of 65 years, whichever is earlier

3.STATE PUBLIC SERVICE COMMISSION

- ✓ Articles 315 to 323 in Part XIV of the Constitution deal with the composition, appointment and removal of members, power and functions and independence of a SPSC.
- ✓ A chairman and other members of State Public Service appointed by the governor of the state. They can be removed only by the president
- ✓ The chairman and members of the Commission hold office for a term of six years or until they attain the age of 62 years.

- ✓ The Constitution makes a provision for the establishment of a Joint State Public Service Commission (JSPSC) for two or more states.
- ✓ While the UPSC and the SPSC are created directly by the Constitution, a JSPSC can be created by an act of Parliament on the request of the state legislatures concerned.
- ✓ Article 315 - Public Service Commissions for the Union and for the states
- ✓ Article 316 - Appointment and term of office of members
- ✓ Article 317 - Removal and suspension of a member of a Public Service Commission
- ✓ Article 320 - Functions of Public Service Commissions

4.FINANCE COMMISSION

- ✓ Article 280 of the Constitution of India provides for a Finance Commission as a quasi-judicial body.
- ✓ Chairman and four other members of Finance Commission to be appointed by the president
- ✓ It is constituted by the president of India every fifth year or at such earlier time as he considers necessary
- ✓ The constitution of India envisages the Finance commission as the balancing wheel of fiscal federalism in India.
- ✓ Articles Related to Finance Commission Article 280- Finance Commission.
- ✓ Article 281- Recommendations of the Finance Commission

5.NATIONAL COMMISSION FOR SCHEDULED CASTES

- ✓ The National Commission for Scheduled Castes is a constitutional body.
- ✓ It is directly established by Article 338 of the Constitution.

6.NATIONAL COMMISSION FOR SCHEDULES CASTES

- ✓ The National Commission for Scheduled Tribes (STs) is a constitutional body.

- ✓ It is directly established by Article 338-A of the Constitution.

7.SPECIAL OFFICER FOR LINGUISTIC MINORITIES

- ✓ Article 350-B of the Constitution, the office of the Special Officer for Linguistic Minorities was created in 1957.
- ✓ He is designated as the Commissioner for Linguistic Minorities

8.COMPTROLLER AND AUDITOR GENERAL OF INDIA

- ✓ The Constitution of India (Article 148) provides for an independent office of the Comptroller and Auditor General of India
- ✓ He is the guardian of the public purse and controls the entire financial system of the country at both the levels—the Centre and the state
- ✓ The Comptroller and Auditor General of India is appointed by the president of India

9.ATTORNEY GENERAL FOR INDIA

- ✓ The Constitution (Article 76) has provided for the office of the Attorney General for India
- ✓ He is the highest law officer in the country
- ✓ The Attorney General of India is appointed by the president. He must be a person who is qualified to be appointed a judge of the Supreme Court
- ✓ He has the right to speak and to take part in the proceedings of both the Houses of Parliament or their joint sitting and any committee of the Parliament of which he may be named a member but without a right to vote
- ✓ Article 88- Rights of Attorney-General as respects the Houses of Parliament and its Committee

10.ADVOCATE GENERAL FOR THE STATE

- ✓ The Constitution (Article 165) has provided for the office of the advocate general for the states
- ✓ He is the highest law officer in the state

- ✓ The advocate general of state is appointed by the governor of respective state. He must be a person who is qualified to be appointed a judge of a high court.
- ✓ He has the right to speak and to take part in the proceedings of both the Houses of the state legislature or any committee of the state legislature of which he may be named a member but without a right to vote

NON-CONSTITUTIONAL BODIES

1.NITI Aayog:

- ✓ On the 13th of August, 2014 Government of India scrapped the 65-year-old Planning Commission and announced that it would be replaced by a new body
- ✓ On January 1, 2015, the NITI Aayog (National Institution for Transforming India) was established
- ✓ It is a non-constitutional or extra-constitutional body and a non-statutory body
- ✓ NITI Aayog is the premier policy 'Think Tank' of the Government of India providing both directional and policy inputs
- ✓ The Prime Minister of India is ex officio chairman of NITI Aayog
- ✓ Governing Council comprises the Chief Ministers of all the States, Chief Ministers of Union Territories with Legislatures (Delhi and Puducherry) and Lt. Governors of other Union Territories
- ✓ Vice-Chairman is appointed by the Prime Minister. He enjoys the rank of a Cabinet Minister

2.NATIONAL HUMAN RIGHTS COMMISSION

- ✓ The National Human Rights Commission is a statutory and not a constitutional body
- ✓ It was established in 1993 under a legislation enacted by the Parliament namely, the Protection of Human Rights Act, 1993.
- ✓ This Act was amended in 2006



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- ✓ The chairman and members of National Human Rights Commission are appointed by the president of India.
- ✓ The chairman and members hold office for a term of five years or until they attain the age of 70 years. Whichever is earlier.
- ✓ The chairman should be a retired chief justice of India, and members should be serving or retired judges of the Supreme Court

3.STATE HUMAN RIGHTS COMMISSION :

- ✓ The Protection of Human Rights Act of 1993 provides for the creation of State Human Rights Commission at the state level
- ✓ Twenty-five states have constituted the State Human Rights Commissions through Official Gazette Notifications
- ✓ The chairperson and members hold office for a term of five years or until they attain the age of 70 years whichever is earlier
- ✓ The chairperson and members of a State Human Rights Commission are appointed by the governor, they can be removed only by the President
- ✓ The chairperson should be a retired Chief Justice of a High Court

4.CENTRAL INFORMATION COMMISSION :

- ✓ The Central Information Commission was established by the Central Government in 2005.
- ✓ It was constituted through an Official Gazette Notification under the provisions of the Right to Information Act (2005). It is not a constitutional body.
- ✓ The Commission consists of a Chief Information Commissioner and not more than ten Information Commissioners. They are appointed by the President of India.
- ✓ Right to Information Act (RTI Act) was passed by Parliament of India on 15 June 2005 and came fully into force on 12 October 2005.
- ✓ The Chief Information Commissioner and an Information Commissioner hold office for a term of 5 years or until they attain the age of 65 years, whichever is earlier

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5.STATE INFORMATION COMMISSION

- ✓ The Right to Information Act of 2005 provides for the creation of a State Information Commission at the state level.
- ✓ All the states have constituted the State Information Commissions through Official Gazette Notifications.
- ✓ The Commission consists of a State Chief Information Commissioner and not more than ten State Information Commissioners. They are appointed by the Governor of respective states.

The State Chief Information Commissioner and a State Information Commissioner hold office for a term of 5 years or until they attain the age of 65 years, whichever is earlier.

6.CENTRAL VIGILANCE COMMISSION

- ✓ The Central Vigilance Commission (CVC) is the main agency for preventing corruption in the Central government.
- ✓ Its establishment was recommended by the Santhanam Committee and established in 1964.
- ✓ The CVC was neither a constitutional body nor a statutory body. Later in 2003, the Parliament enacted a law conferring statutory status on the CVC.
- ✓ The CVC is a multi-member body consisting of a Central Vigilance Commissioner and not more than two vigilance commissioners. They are appointed by the president of India.
- ✓ They hold office for a term of four years or until they attain the age of sixty-five years, whichever is earlier.

7.CENTRAL BUREAU OF INVESTIGATION

- ✓ The Central Bureau of Investigation (CBI) was set up in 1963 by a resolution of the Ministry of Home Affairs.
- ✓ CBI founded on 1 April 1963.

- ✓ The establishment of the CBI was recommended by the Santhanam Committee on Prevention of Corruption.
- ✓ The CBI is not a statutory body. It derives its powers from the Delhi Special Police Establishment Act, 1946.
- ✓ The CBI Academy is located at Ghaziabad, Uttar Pradesh and started functioning in 1996

8. LOKPAL AND LOKAYUKTAS :

- ✓ The Administrative Reforms Commission (ARC) of India (1966–1970) recommended the setting up 'Lokpal' and 'lokayukta' for the redressal of citizens' grievances.
- ✓ Lokpal and Lokayuktas Act (2013) Bill as passed by both Houses has received the assent of the President on 01.01.2014. The Act has been brought into force with effect from 16th January, 2014.
- ✓ The institution of lokayukta was established first in Maharashtra in 1971.

POLITICAL PARTIES:

Indian governance system has multi-party system and the political parties are categorized as –

- ✓ National Political Party;
- ✓ State or Regional (level) Political Party.

The recognition and status of political parties are reviewed and authorized by the Election Commission of India.

ELECTION SYSTEM IN INDIA:

In India, there are three levels of government, i.e.,

- ✓ Center level,
 - ✓ State level, and
 - ✓ Local level.
-
- ✓ At center level, elections are conducted to elect Member of Parliament, which is known as Lok Sabha elections.

- ✓ For Lok Sabha election, the whole country is divided into 543 constituencies and each constituency elects one representative as a Member of Parliament (MP).
- ✓ At the State level, an election is called assembly election; however, unlike center, each state is divided into a different specific number of Assembly constituencies.
- ✓ The elected representative in the assembly election is called as the Member of Legislative Assembly (MLA).
- ✓ Similarly, at the local level, elections are held for the election of Pradhan in Panchayat (rural) areas and counselor in Municipal (urban) areas.
- ✓ Each village or town is divided into several 'wards' (similar to constituencies) and each ward elects one member of the village or the urban local body respectively.

Voting System:

- ✓ The principle of a universal adult franchise is the foundation of the democracy that gives every citizen a right to have one vote and each vote should have equal value.
- ✓ Every citizen of 18 years or more has the right to vote, irrespective of his caste, religion, gender, educational qualification, financial status, etc.
- ✓ To ensure that not even a single person is denied of this basic right for any reason whatsoever, a list of all voters (eligible to vote) is prepared. This list is officially called as the Electoral Roll or the Voters' List.
- ✓ The voters' list is provided to the voters of each constituency much before the election for the purpose of inspection and correction.
- ✓ On the day of election, the people cast their votes as per their names mentioned in the voter list.
- ✓ This method ensures that not a single person is denied his/her right to vote and thus everyone should get an equal opportunity to choose their representatives.
- ✓ The government is responsible to update the voter's list before the election; new names of all the eligible voters are added to the voters' list and names of those who move out from their residential place or those who have been died are deleted.
- ✓ A complete revision of the voter's list takes place every five years.

Election Campaign:

- ✓ The main purpose of an election is to give the people a chance to choose their representatives and make a government of their choice who frames policies to address their concerns.
- ✓ During election campaigns, voters get the opportunity to have a free and open discussion about who is a better candidate, which party can give a better government, or what are their policies.
- ✓ In India, election campaigns take place for two weeks period between the announcement of the final list of candidates and the date of polling.
- ✓ During campaigns, the political leaders address election rallies and political parties mobilize their supporters.

National Commission to Review the Working of the Constitution-

- ✓ NCRWC set up in 2000.
- ✓ About National Commission to Review the Working of the Constitution-NCRWC
- ✓ The National Commission to Review the Working of the Constitution was set up by Government Resolution dated 22 February, 2000 under the Chairmanship of Justice M.N. Venkatachaliah.
- ✓ The terms of reference stated that the Commission shall examine, in the light of the experience of the past 50 years, as to how best the Constitution can respond to the changing needs of efficient, smooth and effective system of governance and socio-economic development of modern India within the framework of Parliamentary democracy, and to recommend changes, if any, that are required in the provisions of the Constitution without interfering with its basic structure or features.
- ✓ The Commission submitted its report in two volumes to the Government on 31st March, 2002.



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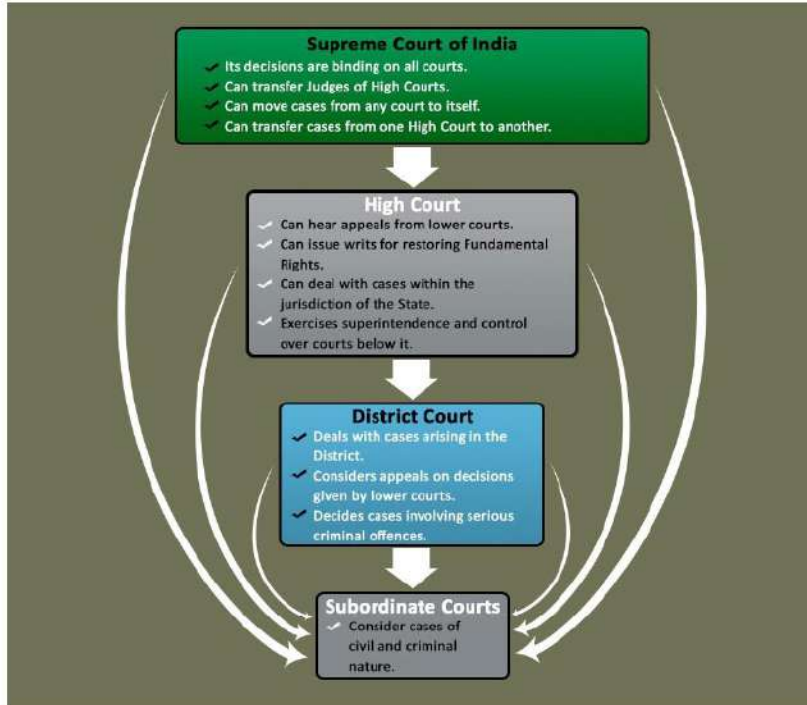
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- ✓ The Commission felt that article 263 of the Constitution has vast potential and the same has not been fully utilized for resolving various problems concerning more than one State.

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How are decisions made in Parliament? | Types of Bills in Indian Parliament

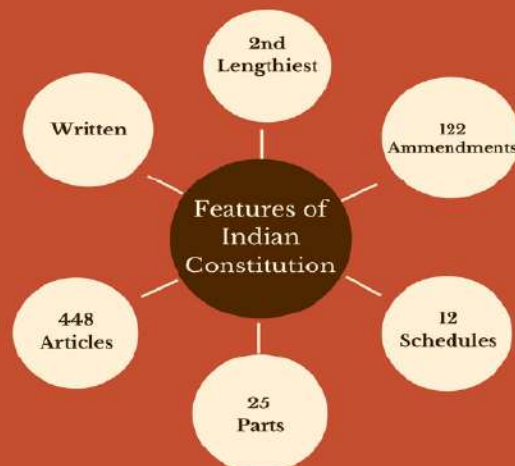


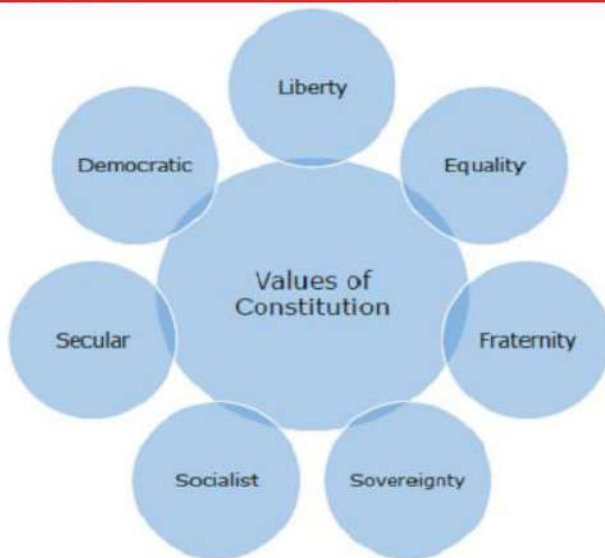
There are four types of bills-

1. Money Bill,
2. Financial Bill,
3. Constitutional Amendment Bill
4. Ordinary bill.

INDIAN CONSTITUTION

The Constitution of India is termed as the Worlds Longthiest Constitution & Dr. B.R. Ambedkar is popularly known as the Father of Indian Constitution. The Constitution was framed by the Constituent Assembly of India on 16th May 1946. Under the cabinet mission plan, the constituent assembly consists of 385 members.







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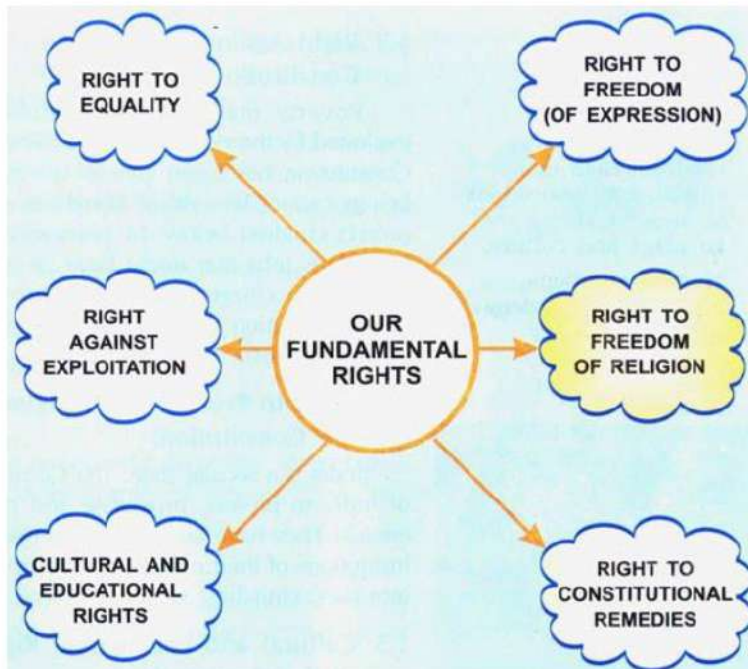
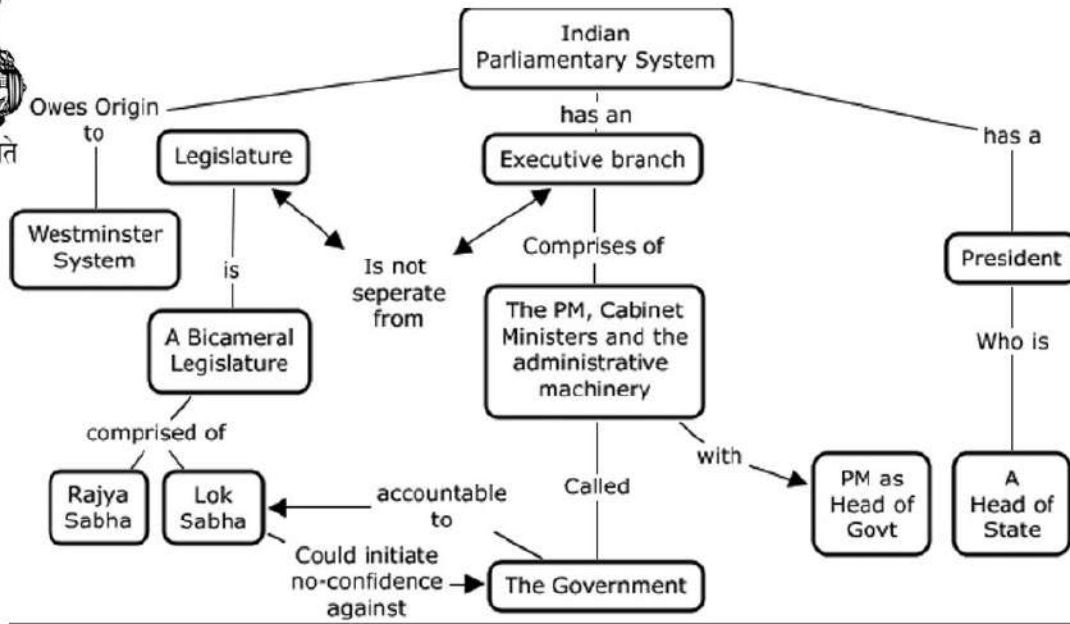
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INDIAN PARLIAMENTARY SYSTEM



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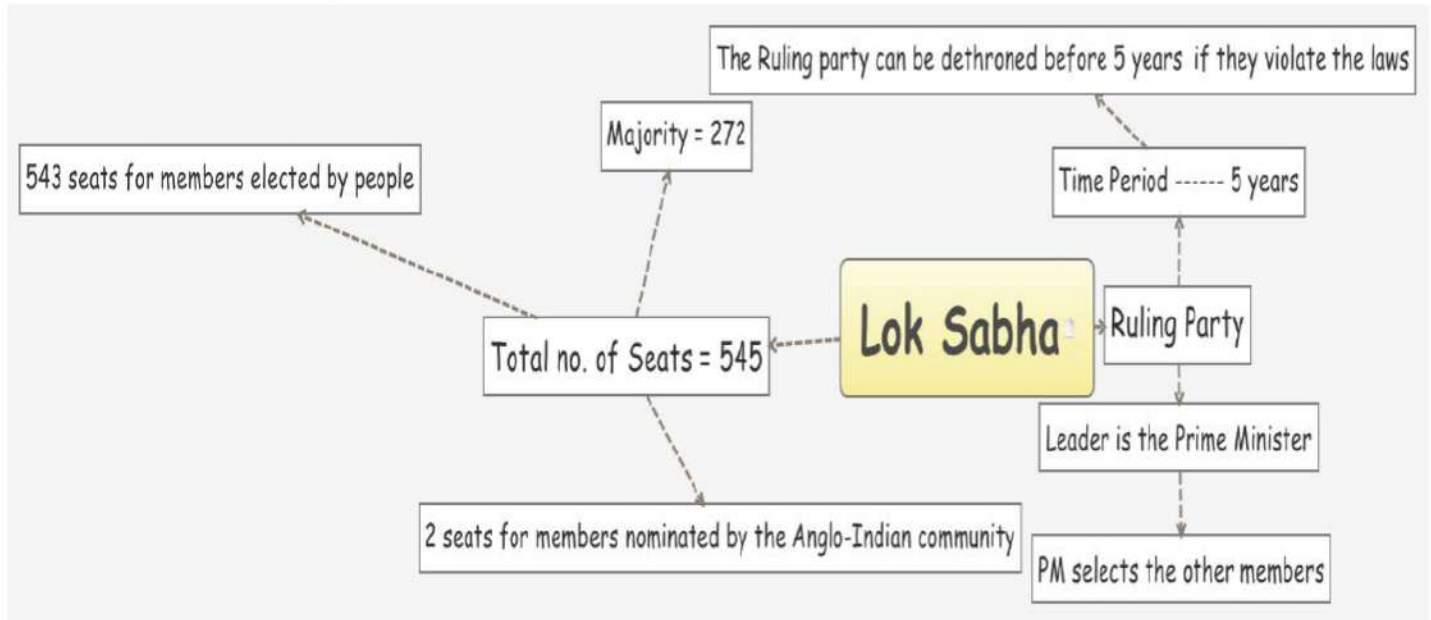


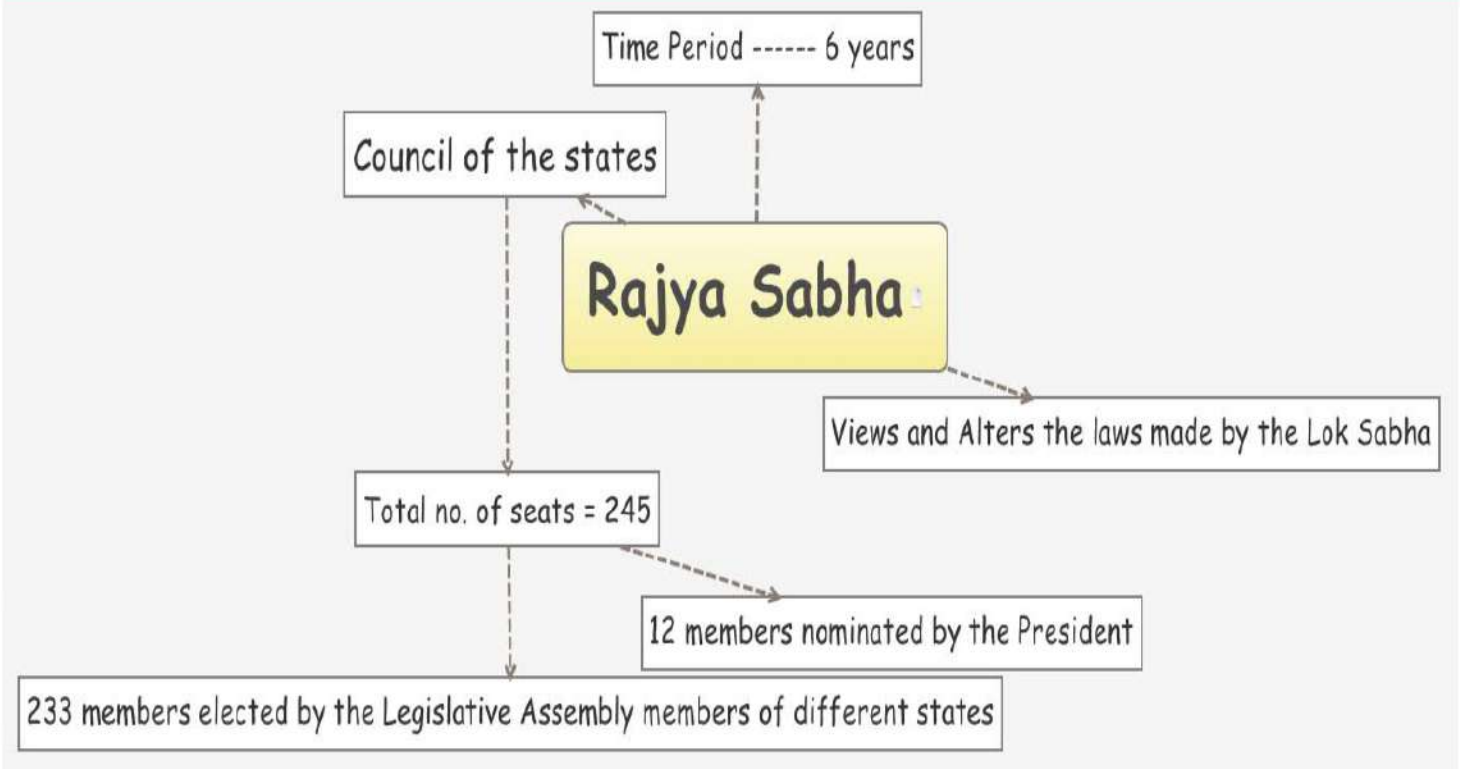
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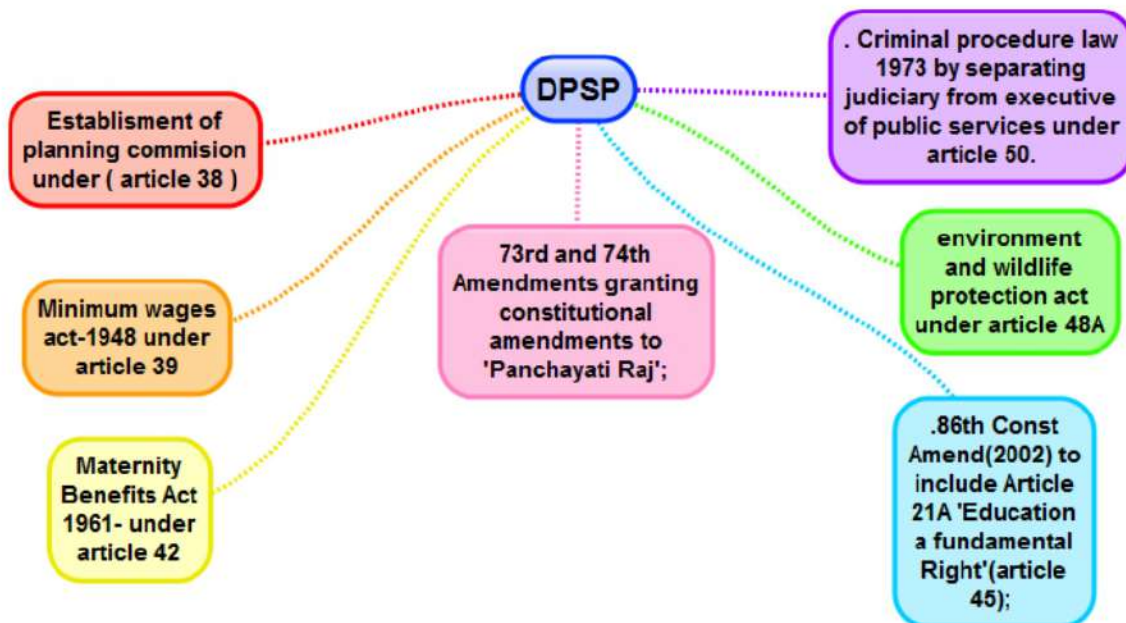
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NON CONSTITUTIONAL BODIES OF INDIA

- **PLANNING COMMISSION**
- **NITI AAYOG**
- **NHRC**
- **CIC**
- **CVC**
- **CBI**
- **LOKPAL**



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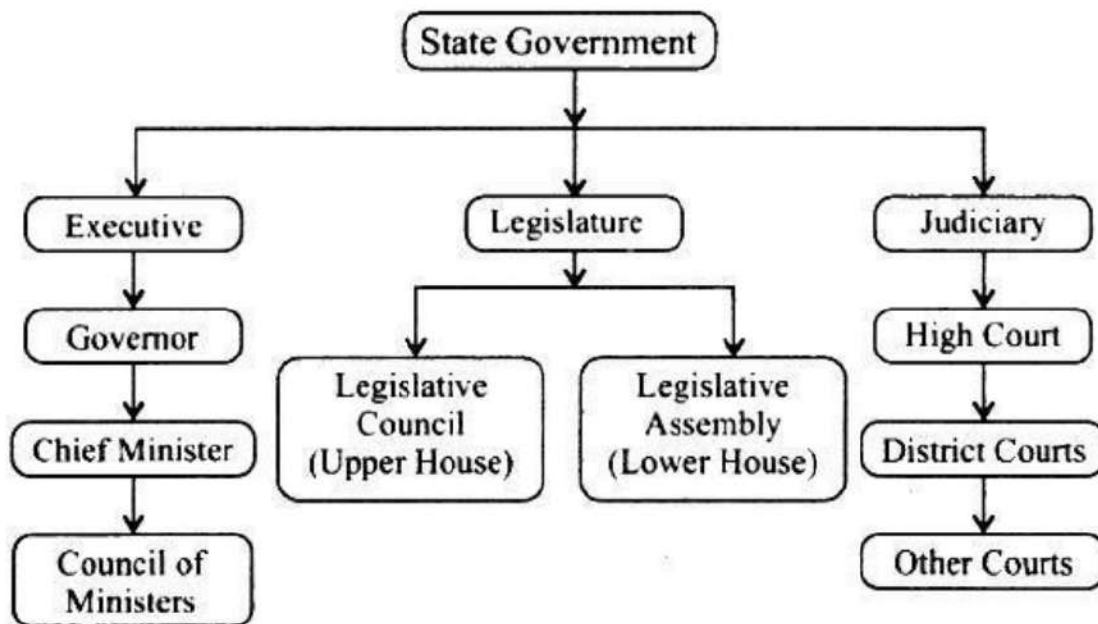


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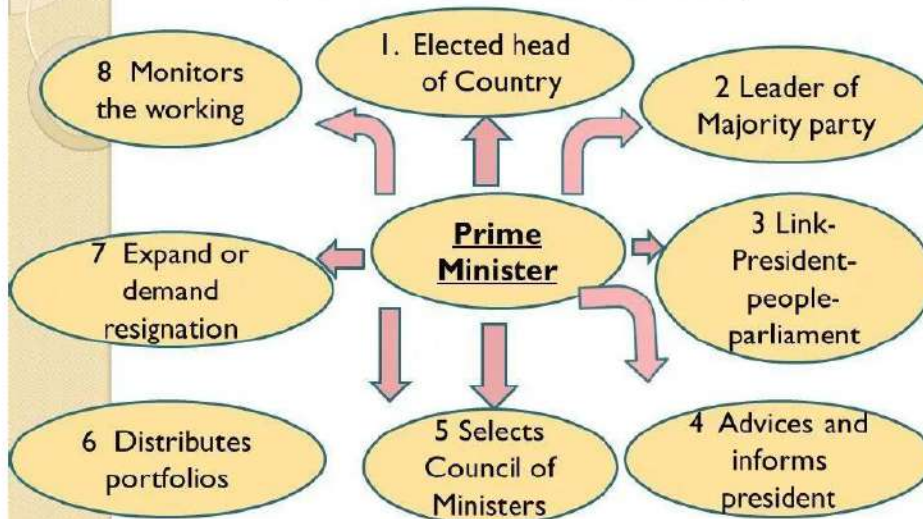
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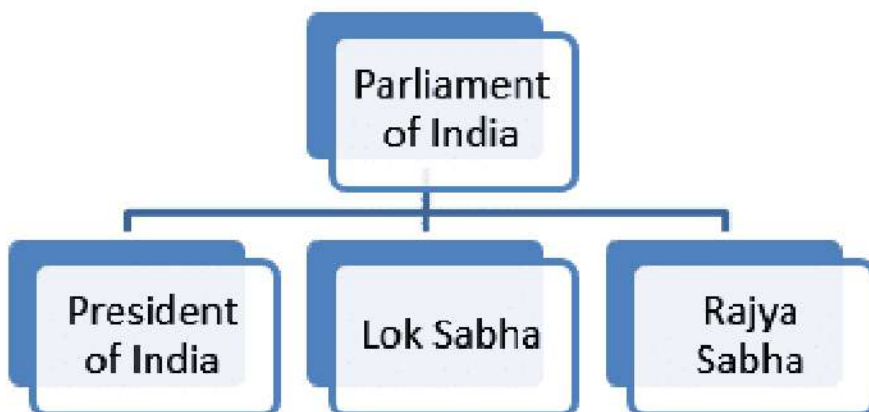
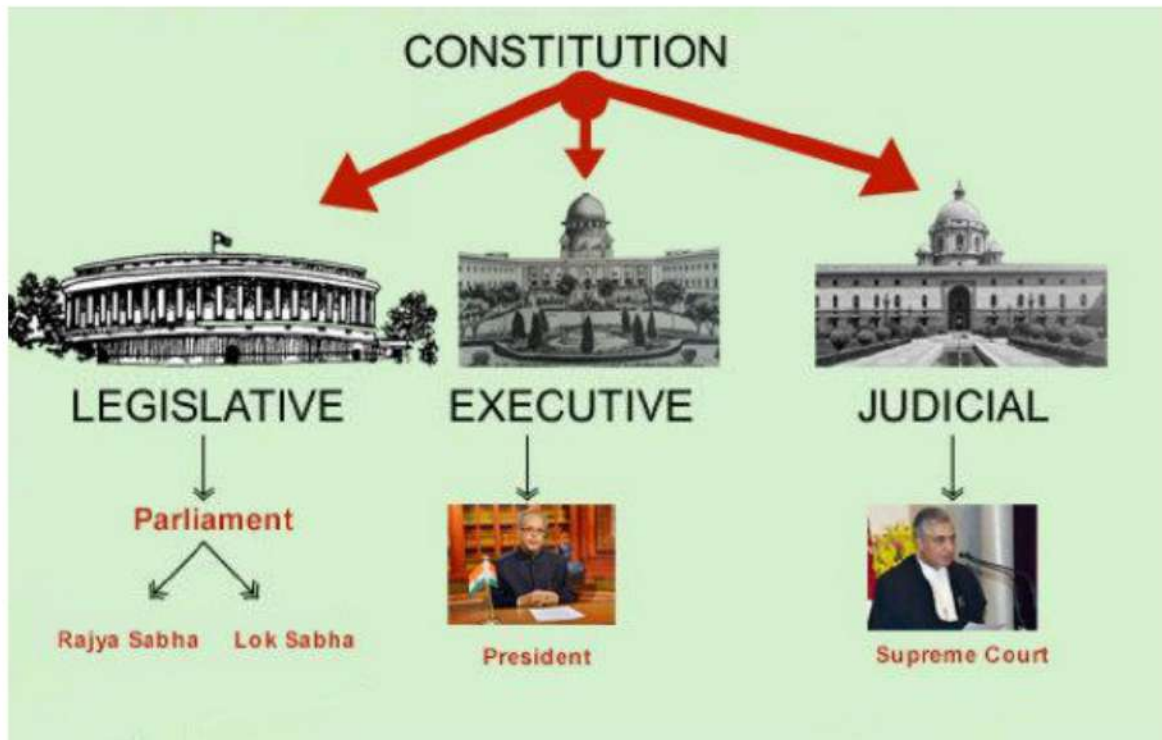
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Functions of The Prime Minister





Functions of Parliament

Legislative Functions

The Executive Functions

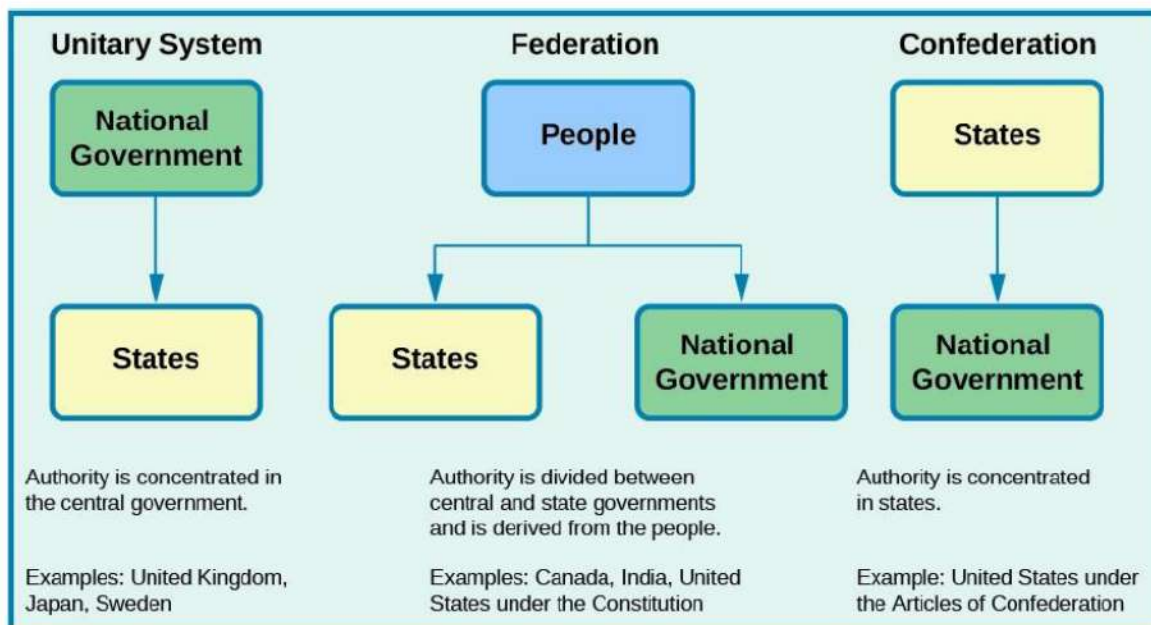
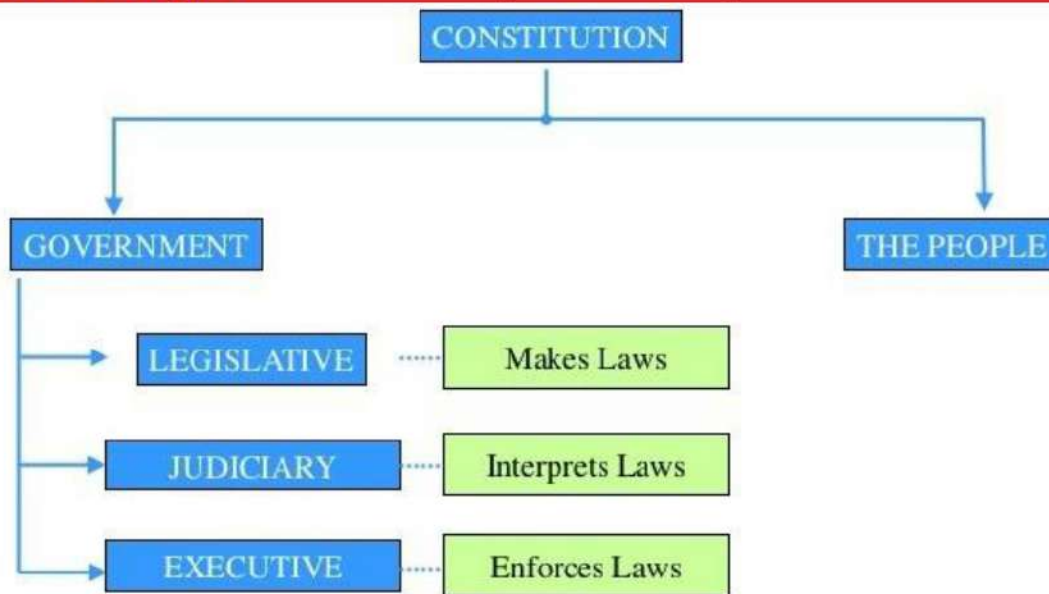
The Financial Functions

The Electoral Functions

Power of Removal

Functions regarding the
Amendment of the Constitution

Miscellaneous Functions





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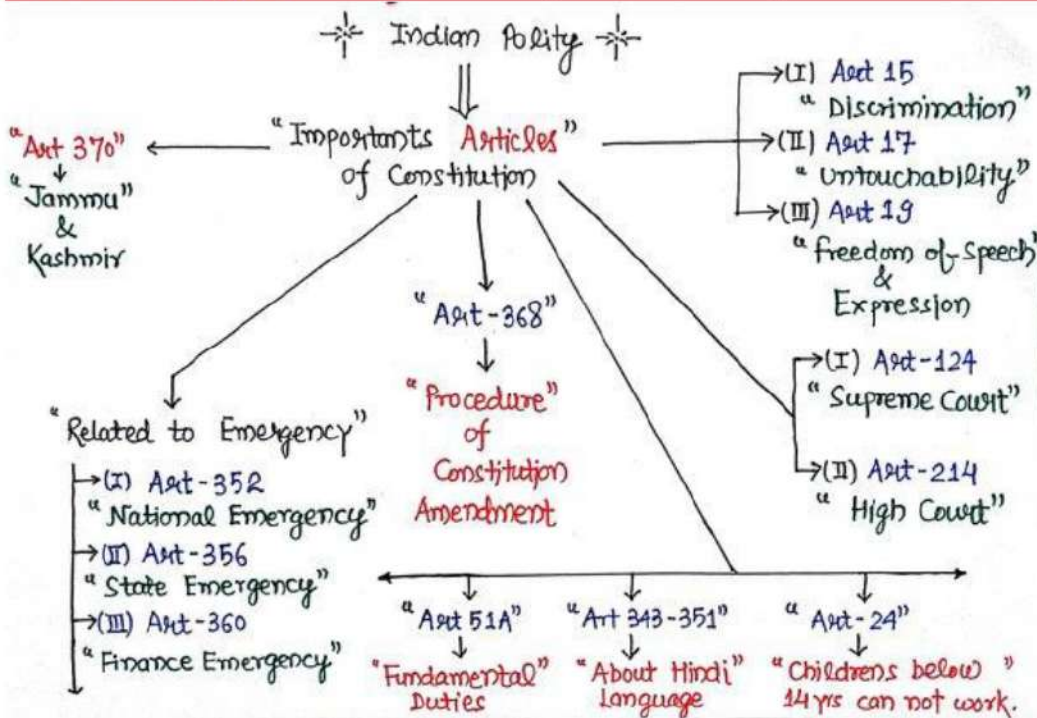
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Powers & functions of Chief Minister

Relation to
Council of
Ministers

Relation to
the
Governor

Relation to
Assembly

Other
Powers &
Functions

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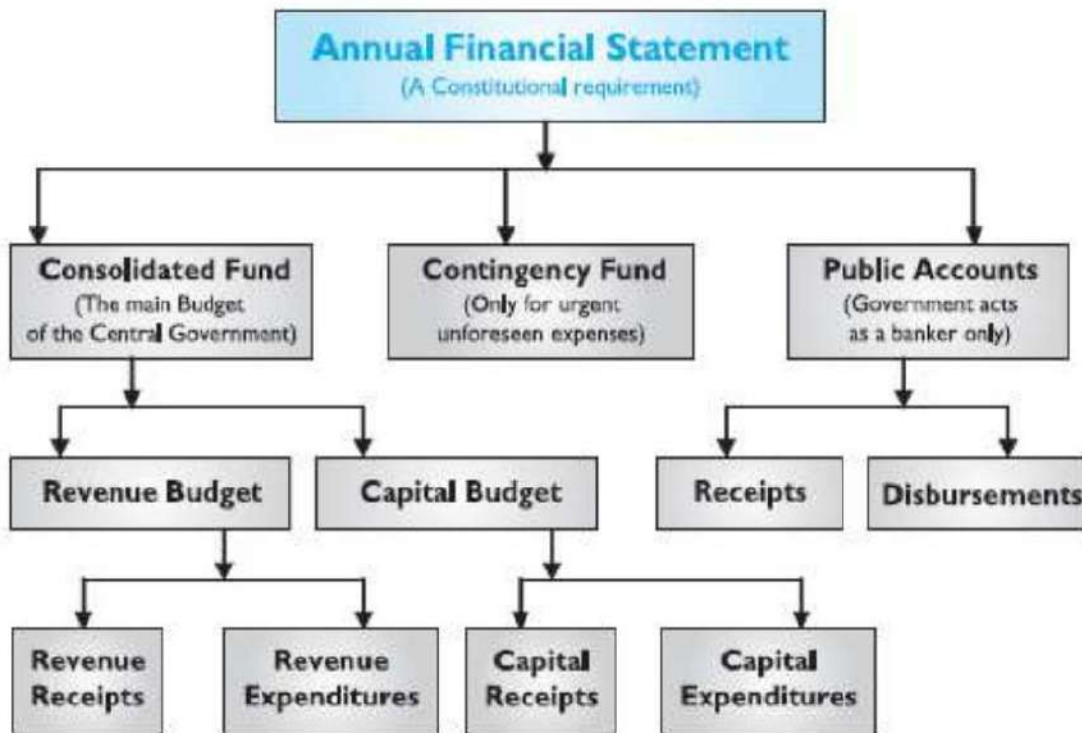
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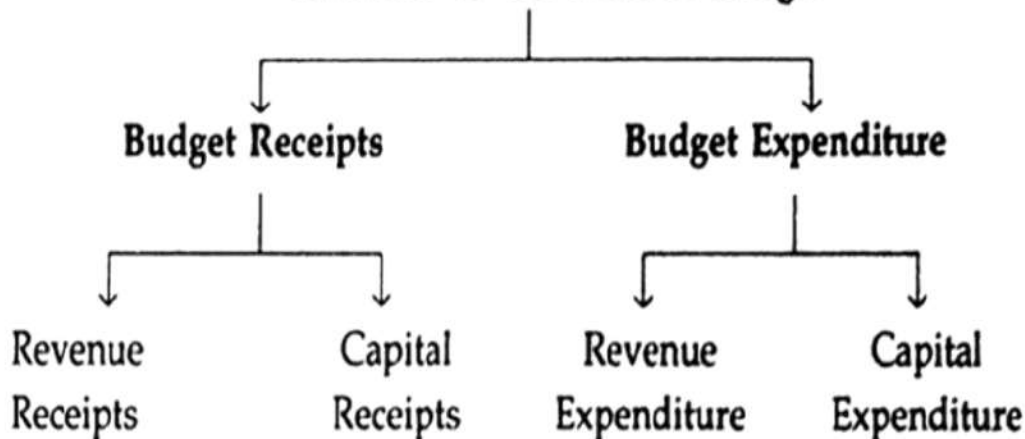
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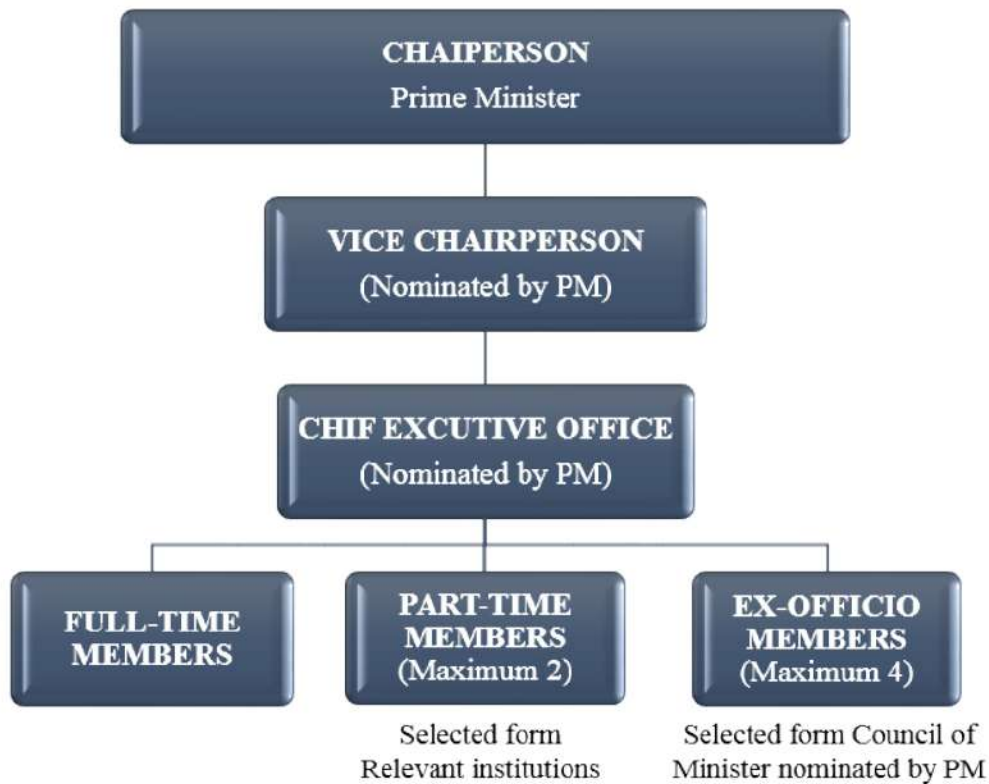
Union Budget of India



Structure of Government Budget



NITI AAYOG



GOVERNING COUNCIL

- Chief ministers and Lt governors of Union territories

REGIONAL COUNCIL

- Chief ministers and Lt governors of Union territories

SPECIAL INVITEES

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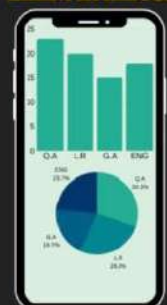


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